

**PORT AUTHORITY MARINE TERMINALS (PAMT)
FMC NO. PA-10**

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY

FMC Schedule No. PA 10

**Naming
Rules and Regulations
Applying At**

Port Authority Marine Terminals

And

**Rates and Charges
Applicable**

For the Use of Public Areas

**At
Port Authority Marine Terminals**

ADOPTION NOTICE

The Port Authority of New York and New Jersey hereby adopts, ratifies, and makes its own, in every respect as if the same had been originally filed and posted by it, terminal tariff PAMT FMC NO. PA10 including all revisions thereto.

NOTICE TO TARIFF USERS

This document is compiled to reflect FMC Schedule No. PA10.

Issued by:

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY
4 World Trade Center
150 Greenwich Street
New York, NY 10007

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SECTION A

EXPLANATION OF TERMS

SUBRULE 34-001: LIABILITY FOR NEGLIGENCE

No provision in this tariff limits or otherwise relieves THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY from liability for its own negligence or imposes on others the obligation to indemnify or hold harmless THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY from liability for its own negligence.

SUBRULE 34-006: PORT BUSINESS DAYS

Monday through Friday exclusive of the Port Authority holidays as defined in Subrule 34-635.

SUBRULE 34-010: BUSINESS HOURS

The hours are between 8:00 AM and 4:00 PM, excluding Saturdays, Sundays, and Port Authority holidays as defined in Subrule 34-635. Services performed during other than business hours shall be the subject of special agreement with the Port Authority.

SUBRULE 34-011: EXPRESSIVE ACTIVITY - DEFINITION OF

For the purpose of these regulations, “expressive activity” refers to the following: Continuous display of a sign to passersby, continuous distribution of literature to passersby, continuous speech addressed to passersby.

SUBRULE 34-015: EXECUTIVE DIRECTOR

The Executive Director of the Port Authority of New York and New Jersey or their successor in office or duties either personally or through their duly authorized representative.

SUBRULE 34-020: EXPLANATION OF ABBREVIATIONS AND REFERENCE MARKS

B. M.	Board Measure
MFBM	Thousand Feet Board Measure
BMF	Board Measurement Feet
Cu. Ft.	Cubic Feet
Ct. T	Cubic Ton - 40 Cubic Feet
Etc.	Etcetera
Lbs.	Pounds
N.J.	New Jersey
N.O.S.	Not otherwise specified
N.Y.	New York
Concl.	Concluded
CENTS	Cent
\$	Dollars
Fahrenheit	Degrees Fahrenheit
%	Percent
TEU	Twenty-foot Equivalent Unit
Cont'd.	Continued
D. O. T.	Department of Transportation
USCG	United States Coast Guard
FMC	Federal Maritime Commission

SUBRULE 34-022: METRIC CONVERSION TABLE

<u>Multiply</u>	<u>By</u>	<u>To Find</u>
Short Tons	0.907	Metric Tons
Long Tons	1.016	Metric Tons
Metric Tons	1.102	Short Tons
Metric Tons	0.984	Long Tons
Pounds	0.454	Kilograms
Kilograms	2.205	Pounds
Measurement Ton (US) (40 cubic feet)	1.133	Cubic Meters
Cubic Meters	0.883	Measurement Tons (40 CF)
Cubic Meters	0.424	MFBM's
MFBM's	2.36	Cubic Meters
Linear Feet	0.305	Meters
Meters	3.281	Feet
Metric Equivalents		
60 Fahrenheit	=	15.6 Celsius
1 linear foot	=	0.3048 meters
1 mile per hour	=	1.61 kilometers/hr.
1 cubic foot	=	.0283 cubic meters
1 pound	=	.4536 kilograms
1 barrel (42 gals.)	=	158.986 liters
1 short ton	=	.9072 metric tons
1 long ton	=	1.0160 metric tons
80 Fahrenheit	=	26.7 Celsius

SUBRULE 34-025: HAZARDOUS MATERIALS

Hazardous materials means a substance or material that the US Secretary of Transportation has determined is capable of posing an unreasonable risk to health, safety, and property when transported in commerce, and has been designated as hazardous under section 5103 of Federal hazardous materials transportation law (49 U.S.C. 5103) and as listed in the Hazardous Materials Table in 49 CFR 172.01.

SUBRULE 34-026: CERTAIN DANGEROUS CARGO

Certain Dangerous Cargos are the hazardous materials and substances listed in 33 CFR 160.202

SUBRULE 34-027: PORT AUTHORITY HOLIDAY - DEFINITION OF

Port Authority holiday is defined as:

New Year's Day	January 1*
Martin Luther King, Jr.	Third Monday in January
Day Presidents' Day	Third Monday in February
Memorial Day	Last Monday in May
Juneteenth	June 19*
Independence Day	July 4*
Labor Day	First Monday in September
Columbus Day	Second Monday in October
Veterans Day	November 11*
Thanksgiving Day	Fourth Thursday in November
Day after Thanksgiving	Fourth Friday in November
Christmas Day	December 25*

*If date occurs on a Saturday, the Port Authority holiday is observed on the preceding Friday.

If the date occurs on a Sunday, the Port Authority holiday is observed on the following Monday, in either case, subject to a contrary determination by the appropriate State legislature then in effect throughout the Port of New York

SUBRULE 34-028: INTERNATIONAL LONGSHOREMEN'S ASSOCIATION HOLIDAY – DEFINITION OF

International Longshoremen's Association ("ILA") holiday is defined as:

New Year's Day	January 1
Martin Luther King's Birthday	Third Monday in January
Lincoln's Birthday	February 12
Presidents Day	Third Monday in February
Gleason's Birthday	March 17
Good Friday	Friday before Easter
Memorial Day	Last Monday in May
Juneteenth	June 19
Independence Day	July 4
Labor Day	First Monday in September
Columbus Day	Second Monday in October
Election Day	November 8
Veteran's Day	November 11
Thanksgiving Day	Fourth Thursday in November
Christmas Eve	December 24
Christmas Day	December 25
New Year's Eve	December 31

or any day observed in lieu of any of the foregoing pursuant to law or waterfront labor contract duly made in pursuance of the collective bargaining agreement then in effect throughout the Port of New York providing for such holidays.

Effective: May 1st, 2026

SUBRULE 34-030: MANAGER

The Manager of a Port Authority marine terminal or their successor in office or duties acting either personally or through their duly authorized representative. The addresses and office phone numbers of these individuals are as follows:

General Manager -Marine **Terminal Facilities**
260 Kellogg Street
Port Newark, NJ 07114
Office Phone 973-578-3507
Email: PortofNYNJ@panynj.gov

SUBRULE 34-035: MARINE TERMINAL OR TERMINALS

Developments operated, managed, controlled, or leased by the Port Authority consisting of one or more piers, wharves, docks, bulkheads, slips, basins, vehicular roadways, intermodal container transfer facilities, railroad connections, side tracks, sidings or other buildings, structures, facilities or improvements, necessary or convenient to the accommodation of vessels, ships, boats, barges, floating structures or other devices which are or may be used for the carriage or transportation of cargo or passengers.

Port Authority Marine Terminals include the Elizabeth-Port Authority Marine Terminal, Howland Hook Marine Terminal, Port Newark, and the Port Jersey Marine Terminal.

SUBRULE 34-036: CONTAINER or CARGO CONTAINER

A box made of aluminum, steel or fiberglass used to transport cargo by ship, rail, truck or barge. Common dimensions are 20'X8'X8' (called a TEU or twenty-foot equivalent unit) used as a universal measurement for container volumes or 40' X 8' X 8' (called a FEU or forty-foot equivalent unit).

SUBRULE 34-037: NON-INTERMODAL RAILROAD CAR

An empty or loaded railroad car, which enters the marine terminal for the purpose of storage and/or the transfer of cargo and is not being loaded or unloaded at an Intermodal Container Transfer Facility.

SUBRULE 34-038: RAILROAD CAR

A wheeled vehicle adapted to the rails of railroad and used for the carrying of cargo or passengers on a rail transport network.

SUBRULE 34-040: PORT DEPARTMENT

The Port Department of The Port Authority of New York and New Jersey.

Effective: May 1st, 2026

SUBRULE 34-045: MARINE TERMINAL HIGHWAY

Those portions of a marine terminal designated and made available temporarily or permanently by the Port Authority to the public for general or limited highway use.

SUBRULE 34-046: MOVEMENT OF OVERWEIGHT OR OVER DIMENSIONAL CARGO ON MARINE TERMINAL HIGHWAYS

Gross vehicle weight of containerized shipments (tractor, chassis, container, cargo, etc.) shall not exceed 128,000 lbs. and shall not exceed manufacturer safe working loads.

Vehicles exceeding 16'3" high and/or 11' wide are considered over dimensional and require approval for shipment through the Marine Terminals from the Office of the Manager, Marine Terminals.

SUBRULE 34-050: PUBLIC VEHICULAR PARKING AREA

Those portions of the terminal designated and made available temporarily or permanently by the Port Authority to the public for the parking of vehicles while conducting authorized business at the Port.

SUBRULE 34-055: PERMISSION

Permission granted by the Manager, Marine Terminals unless otherwise specifically provided.

SUBRULE 34-060: PORT AUTHORITY

The Port Authority of New York and New Jersey.

SUBRULE 34-065: REGULATIONS

The Rules and Regulations set forth in this tariff hereof and any future amendments and supplements.

SUBRULE 34-066: TRANSPORTATION WORKER IDENTIFICATION CREDENTIAL (TWIC)

A Transportation Worker Identification Credential ("TWIC") is a federally issued biometric based smart card that contains a numeric code that is associated with your fingerprint pattern, which links the card to you. It also has your photograph and special security features to prevent unauthorized reproduction of the TWIC and to protect the limited personal information that is embedded in the card.

SUBRULE 34-070: SCHEDULE OF RATES AND CHARGES

The Rates included in FMC No. PA-010 and set forth in this tariff and adopted by the Port Authority on February 3, 1966, and any future amendments and supplements. Unless otherwise specifically noted, all rates and charges are applicable every calendar day, 24 hours per day, and seven days a week. The Port Authority reserves the right to charge users, in accordance with applicable statutes, to recover the cost of undertaking navigational improvements to the Port of NY and NJ. Please refer to Section “L” for the Schedule of Rates and Charges.

SUBRULE 34-071: PAYMENT REMITTANCE

Please remit payments to:

The Port Authority of New York & New Jersey
P.O. Box 95000-1517
Philadelphia, PA. 19195-0001

ACH / Wire Transfer Instructions

For any questions on payments, please contact Port Authority Treasury Department at:
CCARWTACPAYMENTS@panynj.gov

SUBRULE 34-080: TRAFFIC

Pedestrians and vehicles.

SUBRULE 34-085: VEHICLE

Automobiles, trucks, buses, motorcycles, bicycles, and any other device in or upon or by which any person or property is or may be transported, carried or devices running only on stationary rails or tracks.

SUBRULE 34-086: FLOATING CRANE OR CRANE BARGE

A non-self-propelled vessel that has a cargo crane or cargo crane superstructure permanently affixed to the structure or body of the vessel.

SUBRULE 34-087: TRAINMASTER – DEFINITION OF

Official or supervisor of a freight railroad, responsible for train movements, crew assignments, derailments and more.

Effective: May 1st, 2026

SUBRULE 34-088: WINTER WEATHER

Weather that forecasts any accumulation of snow, freezing rain, sleet or ice.

SECTION B

GENERAL TERMINAL RULES AND REGULATIONS

SUBRULE 34-090: MARINE TERMINALS, CONDITION FOR USE OF

Any permission granted by the Port Authority directly or indirectly, expressly or by implication, to any person or persons to enter upon or use a terminal or any part thereof (including) watercraft operators, crew members and passengers, spectators, sightseers, pleasure and commercial vehicles, officers and employees of lessees and other persons occupying space at such terminal, persons doing business with the Port Authority, its lessees, sublessees and permittees, and all other persons whatsoever whether or not of the type indicated, is conditioned upon compliance with the Port Authority Rules and Regulations; and entry upon or into a terminal by any person shall be deemed to constitute an agreement by such person to comply with said Rules and Regulations; provided, however, that unless a provision is made in a lease for application of said Rules and Regulations to the leased premises, such Rules and Regulations shall not apply to such leased premises.

SUBRULE 34-095: PUBLIC WHARVES, AUTHORITY TO USE

No person shall enter upon any public wharf and/or associated area or facility at any Port Authority Marine Terminal except:

- (a) Such persons and their bona fide employees as authorized by law and permitted by the Port Authority to engage in the activities for which said areas have been provided by the Port Authority;
- (b) Duly authorized representatives or employees of the Port Authority or its contractors;
- (c) Representatives of employees of local, state and Federal Government or political subdivisions thereof duly authorized by law to enter thereon; or
- (d) Other persons granted permission to enter thereon by the Manager of a Marine Terminal at which such public wharf, area or facility is located.

In accordance with 33 CFR Part 101.514, all personnel, with the exception of federal officials, law enforcement or emergency workers engaged in official duties, requiring unescorted access to secure and/or restricted areas (which includes vessels and their berths) will be required to display a TWIC at all times when in a secure or restricted area, above the waist and on the outermost garment; identification card holders or pouches must use clear plastic and the TWIC must not be obscured in any way. All personnel requiring access to the Port Authority's owned and/or operated facilities will also be required to carry their respective employer's or trade association identification card. All personnel requiring escorted access must contact the Manager

SUBRULE 34-096: AUTHORIZATION TO USE AND ADDITIONAL CHARGES ON SCHEDULE OF RATES

Failure to obtain authorization prior to the use of any areas of the Marine Terminals and/or failure to comply with the Rules and Regulations under Port Authority Marine Terminals FMC Schedule No. PA 10 will result in additional charges assessed at twice the rate of the applicable stated fee. In addition, failure to comply with any of the Rules and Regulations covered in this document may result in future denial of port use.

Effective: May 1st, 2026

SUBRULE 34-097: CERTIFICATION OF NON-SELF-PROPELLED VESSELS

Prior to using or docking at a public berth, all non-self-propelled vessels must have a U.S. Coast Guard Certificate of Documentation or other vessel certification on file with the Port Authority Manager of the Terminal. The certification must be submitted in writing by an executive officer of the company accepting billing responsibility and liability for the vessel. The certification must specify, at a minimum, the vessel owner, vessel name and markings used in identifying the vessel, and the overall length of the vessel. Any non- self-propelled vessel found moored at a public berth without the aforementioned certification will be subject to Subrule 34-096 and overall length of the vessel shall be determined by field measurements by Port Authority staff.

Notification of any changes of ownership or billing responsibility and liability must be made to the Port Authority Manager of the Terminal within five port business days of such changes. Failure to advise the Port Authority of such changes will make the entities of record liable for all pertinent charges associated with the vessel(s).

SUBRULE 34-098: SUSPENSION OF ACCESS PRIVILEGES

The Port Authority intends to maintain the security of its facilities by reserving the right to suspend access privileges if the individual is convicted of any of (but not necessarily limited to) the following crimes: Unlawful possession, use, sale, manufacture, purchase, distribution, receipt, transfer, shipping, transporting, delivery, import, export of, or dealing in a firearm or other weapon, drugs and/or other controlled dangerous substances; Extortion; Identity Fraud to include false identification; Bribery; Perjury; Smuggling; Violations of the Racketeer Influenced and Corrupt Organizations Act, 18 U.S.C. 1961, et seq., or a State law that is comparable; Robbery/Theft/Burglary and related offenses; Criminal Trespass of Port Authority Property and/or its facilities; Terrorism/Terrorist Threats and/or other related offenses; Arson; Human Trafficking; Conspiracy or attempt to commit the above listed crimes.

SUBRULE 34-100: VEHICLE LOADING OR UNLOADING

No person is permitted to enter upon a public wharf or facility at any Port Authority Marine Terminal, or hire any other person, there present, to perform loading or unloading of vehicles (other than railroad cars) unless such other person shall be a person authorized by law to perform such work at such place as an independent contractor.

SUBRULE 34-105: COMPLIANCE WITH GOVERNMENTAL REGULATIONS

All users of a terminal shall observe and comply with (and compel its officers, employees and agents and others doing business with it and them to observe and comply with) all governmental laws, rules, regulations, requirements, orders and directions which pertain or apply to the use of a terminal or to any of its or their operations at a marine terminal.

SUBRULE 34-106: SECURITY OF OPERATIONS AND FACILITY

Except when security guard services are provided as part of a Port Authority Berth Assignment Permit, all users of a marine terminal or areas in, on, or immediately adjacent to (including but not limited to vessels alongside) a marine terminal shall be fully responsible for and shall provide for all security necessary for all aspects of their operations, including but not limited to cargo and cargo handling, personnel matters, and all security-related documentation required by governmental entities. By using a marine terminal or areas in, on, or immediately adjacent to a marine terminal, the user acknowledges and accepts the responsibility for providing such security. Each such user shall indemnify and hold harmless the Port Authority, its commissioners, officers and/or employees from any and all liability, claims and demands relating in any way to compliance or noncompliance with the requirements of this section.

SUBRULE 34-107: HELICOPTER FLY-IN/FLY-OUT

No person shall fly in a helicopter to a public berth area to be loaded on to a vessel for export or fly out from a public berth without written permission from the Manager of the Marine Terminal. All fly-ins or fly-outs must comply with instructions, procedures, and/or restrictions, which will be provided when the initial notification is made upon the filing of the berth application using the Berth Assignment Application.

SUBRULE 34-108: UNMANNED WATER VESSELS AND AERIAL VEHICLES (DRONES)

The use of unmanned water vessels, aerial vehicles or drones are not permitted within waterways adjacent to Port Authority property, nor on or over Port Authority property except as approved by the Port Authority. If approved, unmanned operations must be operated in accordance with Federal, state, local laws, rules and regulations, and Port Authority regulations. Operations of unmanned water vessels, aerial vehicles or drones shall not make contact with or come within a distance close enough to interfere with the operations or cause a disturbance to the Marine Terminals.

SUBRULE 34-110: RESTRICTED AREA USE

No person shall enter any restricted area of a terminal posted as being closed to the public, except

- (a) persons assigned to duty therein;
- (b) authorized representatives of the Port Authority; and
- (c) persons having permission from the Manager.

SUBRULE 34-115: LOST ARTICLES

Any person finding lost articles at a terminal shall deposit them at the office of the Manager. Articles unclaimed by the owners in ninety days will be turned over to the finders thereof, unless found by Port Authority employees.

SUBRULE 34-120: COMMERCIAL ACTIVITY PROHIBITED

No person shall carry on any commercial activity at a terminal without the consent of the Port Authority.

SUBRULE 34-125: BILL POSTING PROHIBITED

No person shall post, distribute or display signs, advertisements, circulars or printed or written matter at a terminal without permission.

SUBRULE 34-130: ASSIGNMENT OF RAILROAD CARS

The Manager shall have, in his or her sole discretion, when he or she deems it is in the interest of overall safe and efficient use of a terminal, the right to assign railroad cars using the tracks at a terminal to any specified location at a terminal and to limit the number of such cars permitted within any area at a terminal. The Port Authority shall not be responsible for loss or damage or increased charges for transportation, switching or demurrage incurred as a result of such assignment or limitation by the Manager.

SUBRULE 34-131: REPORTING OF NON-INTERMODAL RAIL CARS AND USE OF RAIL TRACK ACTIVITY

On a daily basis, the Trainmaster, or other designated responsible individual, of each railroad operator responsible for transport of the railroad cars must submit in writing to the Manager the scheduled activity of non-intermodal rail cars and the use of terminal rail track for that night, prior to commencing rail operations at the New Jersey Marine Terminals. On the following day, the Trainmaster, or other designated responsible individual, of each railroad operator responsible for transport of the railroad cars must submit in writing to the Manager the actual activity of non-intermodal rail cars and the use of terminal track for the previous night. In the event of a Port Authority holiday, this information must be provided on the first working day thereafter. Such report shall include, but not be limited to, the total number of rail cars transported to and from the terminal, the name of the tenant the rail cars were transported to and or from, the number of rail cars transported to and or from each such tenant, the cargoes transported in the rail cars, the weight of the cargoes transported, and the time and date of each transport. The railroad operator shall be responsible for providing these reports on a timely basis. Failure to submit such reports shall, upon written notice from the Manager, require the railroad operator to obtain prior authorization for each and every use of any areas of the terminal.

SUBRULE 34-132: RAILROAD CAR, UNAUTHORIZED STORAGE

Unless otherwise provided in a lease or other agreement, no tenant shall allow its non-intermodal railroad cars to be serviced, stored or remain on a marine terminal in an area that is outside its leasehold. Without first obtaining the specific written permission of the Manager, such person or tenant shall be assessed a charge. Please refer to Section "L" for the Schedule of Rates and Charges.

SUBRULE 34-135: SPACE, UNLEASED

Unless otherwise provided in a lease or other agreement, no person shall use any open or covered area of a terminal for storage of cargo or other property without the permission of the Manager. When the Manager deems that such use will not interfere with the operation of a terminal and such permission is granted, the charge for use of an open area or covered area shall be outlined in Section "L" Schedule of Rates and Charges. Additionally, the user of the area shall, when applicable, be responsible for its apportioned share of utility charges for the subject property. These charges shall be apportioned based on the users occupied area.

If, notwithstanding the above prohibition, a person uses such areas for storage as aforesaid, without first obtaining such permission, then the Manager shall have authority to order the cargo or other property removed at the expense of the owner or consignee thereof. The rate identified in Subrule 34-096 shall apply for the time said cargo or other property has been so stored. Please refer to Section "L" for the Schedule of Rates and Charges.

SUBRULE 34-140: SANITATION

- (a) No person shall place, discharge, or deposit in any manner, offal, garbage, or any other refuse in or upon a terminal, including the waters thereof. If this prohibition shall be violated, the Port Authority may perform, or have performed, the work of removing and disposing of any such offal, garbage, debris or any other refuse, which has been placed, discharged, or deposited in or upon a terminal, including in the waters thereof, and the violator shall be charged the cost of such removal and disposal.
- (b) No person shall place, discharge, or deposit, or allow to be placed, discharged, or deposited, in any manner, any item or commodity in the waters of a terminal. If this prohibition shall be violated, the Port Authority may perform, or have performed, the work of removing and disposing of any such item or commodity which has been placed, discharged, or deposited in the waters of a terminal, and the violator shall be charged the cost of such removal and disposal.

SUBRULE 34-145: CARGO MOVEMENTS: IMPROPER HANDLING PROHIBITED

No cargo, goods or merchandise shall be moved across or upon or placed upon or allowed to remain upon any pier, wharf, roadway or other place at a terminal of such a nature or in such quantity or in such a manner as to endanger unreasonably or to be likely to endanger unreasonably person or property

SUBRULE 34-150: CARGO HANDLING

All stevedoring work, and the handling of cargo to and from a terminal, must be performed in a manner and with equipment satisfactory to the Port Authority from a safety standpoint, which includes, but is not limited to, confirmation that handling equipment is maintained in good operating condition at all times, but the Port Authority assumes no responsibility for the performance of such work.

To maintain complete records of the foregoing, all lessees, sublessees, and permittees doing business at a Marine Terminal shall provide to the Port Authority an annual inventory and maintenance report of all equipment utilized for work within their leased, subleased, or permitted areas of a Marine Terminal. Initial reports and inventory shall be submitted no later than June 1, 2026, in a format to be provided by the Port Authority. Subsequent reports will be submitted annually no later than February 1 each year. Information within these reports will at a minimum include the Year, Make, Model, and an attestation that the use of equipment complies with manufacturers' design standards, and that maintenance performed is in keeping with manufacturers recommended guidance.

SUBRULE 34-155: REFUSE REMOVAL

All litter, dunnage and refuse of all kinds shall be cleaned and disposed of by the persons responsible, therefore. Otherwise, the work will be performed by the Port Authority and the cost thereof charged against such persons.

SUBRULE 34-160: EXPLOSIVES, HAZARDOUS MATERIALS AND COMBUSTIBLE LIQUIDS

No watercraft carrying explosives (other than ammunition for small arms or any explosives required by law to be carried by such watercraft) or inflammable liquids in bulk (having a flash point of 80 Fahrenheit or lower, open cup test) will be permitted to moor at a terminal, unless permission has been obtained in advance from the Port Authority.

SUBRULE 34-165 : GAS FREE CERTIFICATION

No watercraft last used for the bulk transportation of inflammable liquids (having a flash point of 80 Fahrenheit or lower, open cup test), or inflammable compressed gases, shall be berthed at a terminal unless written permission has first been obtained from the Manager.

SUBRULE 34-170: FISSIONABLE MATERIALS

No person shall store, keep, handle, use, dispense, or transport at, in, or upon a terminal, any special nuclear material, including, but not limited to Uranium 233, Uranium 235, Plutonium 239; any source material, including, but not limited to uranium, thorium, any irradiated fuel elements; any new reactor fuel or elements; any radioactive waste material; any radioactive material moving under **United States Nuclear Regulatory Commission ("USNRC") license**; without twenty-four hour prior notice and the specific permission to move such material through the facility by the Manager; provided no permission

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or notice is required for the movement of medical or industrial isotopes other than those specifically included in the aforementioned, when packaged, marked, labeled and limited as to quantity and radiation emissions in accordance with D.O.T. Hazardous Material Regulations in 49 CFR 171-180, and USNRC Regulations in 10 CFR 71

SUBRULE 34-180: EXPLOSIVE MATERIALS

No person shall store, keep, handle, use, dispense or transport at, in or upon a terminal, any explosive article, substance or material, at such time or place or in such manner or condition as to endanger unreasonably or as to be likely to endanger unreasonably persons or property.

SUBRULE 34-190: HAZARDOUS MATERIALS OPERATIONS AND HANDLING

1. All cargo entering the jurisdiction of the Port Authority must comply with the requirements of 49 CFR, Parts 171-180 and the International Maritime Dangerous Goods (IMDG) Code relating to the transportation of Hazardous Materials.
2. Unless permission is first obtained, hazardous materials shall only be received during designated gate hours prescribed by the receiving terminal and coordinated in advance of arrival. Such materials shall only be handled as follows:
 - (a) Maximum separation shall be provided for all hazardous materials to prevent impact with vehicles.
 - (b) Flammable liquid in excess of five gallons shall not be stored or handled in cargo sheds, but shall be transferred directly between ship and truck, provided flammable liquids may be temporarily stored in assigned upland areas when protected from vehicle impact, and in accordance with NFPA 307, Standard for the Construction and Fire Protection of Marine Terminals, Piers, and Wharves. Flammable liquids or solids subject to effects of excess heat from sun's reaction (nitro-cellulose carbon bisulfide) shall be shaded with tarpaulin or suitable noncombustible sun sheds.
 - (c) Inflammable liquids and compressed gases shall be so handled upon terminal premises as to provide maximum separation from freight consisting of acids or other corrosive liquids.
 - (d) Inflammable solids or oxidizing materials shall be so arranged as to prevent moisture or acids and other corrosive liquids from coming in contact therewith.
 - (e) Acids and other corrosive liquids shall be so handled as to prevent contact with other hazardous materials and organic materials in the event of leakage.
 - (f) Poisons shall be so handled as to prevent their contact with acids, corrosive liquids or inflammable liquids.
 - (g) All hazardous materials shall be arranged in such a manner as to retard the spread of fire. This shall be accomplished by interspersing piles of dangerous freight between piles or inert or less combustible materials.

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3. Whenever any domestic or foreign vessel which is inbound into the jurisdiction of the Port Authority has on board certain dangerous cargo identified in Title 33 CFR 160.202 or whenever there is a hazardous condition on board such a vessel, or caused by such a vessel or its operation, the vessel or Vessel Agent shall comply with 33 CFR Part 160.216, and also notify the Port Authority at least twenty-four hours in advance of such ship's arrival. Upon arrival, it shall be the responsibility of the Vessel or Vessel's Agent to remove any damaged cylinder, pressure vessel or container from the vessel and from the confines of the waterfront facility within twenty-four hours and without avoidable delay.
4. All vessels loading hazardous materials listed in 49 CFR 172.101 must depart the assigned berth immediately upon conclusion of cargo operations, unless instructed otherwise by the United States Coast Guard Captain of the Port.
5. Containers transporting hazardous materials shall be maintained, packaged and marked with the appropriate D.O.T. classification and labeled in accordance with 49 CFR Parts 171-180 and the IMDG code, stored in a location designated by the manager and handled as follows:
 - (a) Hazardous cargo containers, liquid or dry, shall be stored in such a manner as to be readily accessible to fire department operations. They shall be stored on an access aisle and never enclosed by other containers or other obstructions
 - (b) The storage area shall be within 500 feet of a fire hydrant.
 - (c) A portable 150-pound dry chemical fire or CO2 extinguisher shall be provided and stationed no more than 100 feet from the storage area.
 - (d) Storage areas for dangerous cargo containers shall be kept clear of rubbish, other combustible waste matter and other debris.
 - (e) Containers under refrigeration or heating, employing fuel-fired heaters or engine-driven refrigeration machinery, shall be separated from other containers, and a 150-pound wheeled dry chemical extinguisher shall be stationed within 100 feet of such containers.
6. The transfer of flammable or combustible liquids from tank vehicles to portable cargo tanks either aboard ship or on the wharf shall not be conducted except under specific permission of the Manager and under conditions established as a part of the permission. A standby fire watch with a 150-pound portable dry chemical fire extinguisher shall be available during any transfer operation.
7. For the purpose of these regulations liquid containers previously containing a flammable liquid, combustible liquid, flammable gas, poison class A or any other similar hazardous material will be treated as a loaded container.

SUBRULE 34-200: CARGO - WET OR FIRE DAMAGED

Wet or fire damaged cargo shall not remain on any wharf or other portion of a terminal without permission of the Manager.

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SUBRULE 34-205: RESPONSIBILITY FOR INJURIES AND DAMAGE

Any person causing any damage to Port Authority property shall be required to pay to the Port Authority on demand for the full cost of repairs.

SUBRULE 34-210: LOSS OR DAMAGE - PORT AUTHORITY NOT LIABLE

The Port Authority shall not be liable for loss or damage to any watercraft or to any merchandise or cargo at the terminal.

SUBRULE 34-215: SAFETY AND FIRE PREVENTION

No person shall store, handle, dispense, keep or use any gasoline distillate or other liquid petroleum products, other than lubricating oils, at a terminal except at such places and under such condition as may be especially designated by the Manager; provided, however, that any retail sale or delivery of such products in bulk shall be made from any by means of pipe and hose equipped and provided with connections and valves, as approved by the Manager, and at such places as may be so designated therefore. Such gasoline, distillate or other liquid petroleum products shall not be handled or delivered between sunset or sunrise, unless the premises are lit only by incandescent electric lights, properly protected.

SUBRULE 34-220: FUELING WATERCRAFT

Nothing herein contained shall prevent dispensing of such products provided at retail from barges to watercraft direct, provided such barges are moored at such places as the Manager may direct.

SUBRULE 34-225: FIRE HAZARDOUS VEHICLES OR EQUIPMENT PROHIBITED

No person shall operate any tractor, truck or other equipment driven by internal combustion engines within a terminal if the construction or condition of such equipment constitutes a fire hazard in the mind of a reasonably prudent person or if so notified by the Manager.

For the avoidance of doubt, all equipment operating upon a Marine Terminal must comply with all safety regulations and guidance for equipment used, including, but not limited to, those promulgated by the US Department of Transportation, the Occupational Safety and Health Administration, and the National Fire Protection Association, as applicable, including the requirement to carry a portable fire extinguisher in all equipment.

SUBRULE 34-229: WEAPONS PROHIBITED

No person, except a qualified law enforcement officer from a federal, state, or local agency who is authorized to carry a firearm, licensed armed security guards, and members of the armed services of the United States or any State on official duty, shall transport or carry (open or concealed) a firearm, weapon (as defined by the New Jersey Code of Criminal Justice), or deadly weapon (as

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defined by the New York State Penal Law) at any facility in a Port Authority Marine Terminal or on a marine terminal highway, without authorization or approval from the Port Authority.

SUBRULE 34-230: INDIVIDUALS PROHIBITED FROM ENDANGERING OTHERS AT TERMINAL

No person shall, in or upon a terminal do or omit to do any act if the doing or omission thereof endangers unreasonably or is likely to endanger unreasonably person or property.

SUBRULE 34-231: EXPRESSIVE ACTIVITY REGULATION AND PERMIT

1. No person, while engaged in expressive activity, shall:
 - (a) Carry on any commercial activity;
 - (b) Distribute pamphlets, food, or any other product;
 - (c) Erect any structure;
 - (d) Carry a sign or placard attached to a rod or stick;
 - (e) Attach, adhere or affix any posters, flyers or other such similar materials onto utility poles, light posts, or other fixtures;
 - (f) Hang or suspend any banners onto buildings or fixtures such as fences, railings, or guiderails;
 - (g) Enter or remain in any space such that his or her presence would:
 - i. Unreasonably interfere with use of any of the following: sidewalk, walkway, roadway, driveway, entrance, exit, or vehicle loading or discharge area;
 - ii. Present an unreasonable risk of harm to himself or herself or to others;
 - (h) Engage in pedestrian activity in any area other than one designated for such activity, such as a sidewalk or walkway;
 - (i) Park a vehicle, or permit a vehicle to be parked, in any area where, or during any time when, vehicle parking is prohibited;
 - (j) Use an electrical sound amplification device; or
 - (k) Violate any other provision of the Port Tariff (FMC Schedule No. PA 10, naming Rules and Regulations Applying at Port Authority Marine Terminals and Rates and Charges Applicable for the Use of Public Areas at Port Authority Marine Terminals).
2. The Manager of a Port Facility, or in his or her absence, the person designated to act in his or her stead for general management purposes, may prohibit expressive activity on facility property which would otherwise be permitted in the event of, and during the pendency of, an emergency condition such as a snowstorm, fire, accident, power failure, a heightened security or other condition of such nature and character that the conduct of permitted activities would cause a danger to persons or property during the pendency of such emergency condition.

Persons shall conduct expressive activities only pursuant to a permit obtained pursuant to paragraph 3 below.

3. Permit application shall be made, and acted upon, as set forth below:
 - (a) An application for a permit to engage in expressive activity shall be submitted in writing to the Manager, Marine Terminals at which activity is to take place no later than forty-eight (48) hours preceding the commencement of the activities for which the permit is sought. The application shall be submitted in person during business hours as defined in Subrule 34-010.
 - (b) The permit application shall set forth the type, time, location and duration of activities to be conducted, and the name, address and telephone number of the person making the request (in

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the case of a group, it shall be sufficient to supply the name, address, and telephone number of the person who can be contacted if problems arise concerning the granting of the request).

- (c) If a person making the application indicates an affiliation with an organization or group, the name and address of a local representative of the organization or group to act as a liaison is requested; however, refusal to provide such information shall not be grounds for denial of a permit.
- (d) Each permit shall be valid for a period specified by the applicant, not exceeding seven (7) days pursuant to a single application.
- (e) Renewal applications shall be made in the same form used for new applications, and shall be processed as if they were new applications.
 - i. All locations will be assigned on a first-come, first-serve basis, without regard to renewal status.
 - ii. The use of space previously used pursuant to a permit is not guaranteed by acceptance of a renewal application.
- (f) A permit for any location will be granted on a first-come, first-serve basis.
 - i. An application will be denied only if the area requested is in use by another person, the application is incomplete, or the application discloses that the activities to be performed thereunder will violate these Rules.
 - ii. A permit will be issued, or the application denied, by the Manager of the Port Facility, or a designee thereof, no later than 4:00 PM of the port business day following submission of the application.
 - iii. The reason for the denial of an application shall be set forth in writing.
 - iv. Upon the denial of any application for a permit, or the failure to issue a permit by 4:00 PM of the port business day following submission of the application, an applicant may submit a written appeal to the Director of the Port Department, or a designee thereof, setting forth the reasons why the application should be granted.
 - v. An appeal shall be submitted in person to the Director of the Port Department, or a designee thereof, during business hours as defined in Subrule 34-010.

(A) A written decision denying the appeal, or issuing a permit, shall be made by the Director of the Port Department, or a designee thereof, no later than 4:00 PM of the port business day following submission of the appeal.

(B) If no decision is issued by 4:00 PM of the port business day following submission of the appeal, the appeal shall be deemed to be denied based on the original decision denying the application,

- vi. Any person whose application for a permit has been denied may seek review of the final decision denying such application in a proceeding commenced pursuant to Article 78 of the Civil Practice Laws and Rules of the State of New York, or action in lieu of prerogative writ in the courts of the State of New Jersey.

SUBRULE 34-235: LIFE SAVING EQUIPMENT, USE OF

No person shall remove, tamper with, deactivate or handle life preservers, emergency ladders and fire protection-life safety system(s) or equipment at a marine terminal or vessel docked at a marine terminal except for emergencies for which they are intended.

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SUBRULE 34-240- SMOKING OR OPEN FLAMES PROHIBITED

No person shall smoke or carry lighted cigars, cigarettes, electronic cigarettes, pipes, matches or use any open flame in or upon any portion or area of a terminal used for the loading, unloading, handling or holding of cargo, or on the open deck.

SUBRULE 34-245: TRAFFIC AND PARKING

No vehicles, unless engaged in the transportation of cargo, passengers or property shall be allowed in any mooring facility; provided however, that nothing in this paragraph shall be construed to prohibit access to the mooring facilities by vehicles on emergency calls or by vehicles owned or operated by the Port Authority.

SUBRULE 34-250: ENGINE REFUELING RULES

No internal combustion engine fuel tank shall be filled or refilled with gasoline at or on any mooring facility or inside any building at a terminal.

SUBRULE 34-255: VEHICLE REFUELING RULES

Vehicles and equipment using gasoline or diesel oil as fuel shall be refueled from:

- (a) UL approved safety cans fitted with a flexible spout for easy pouring;
- (b) Approved above ground storage and dispensing systems, authorized and installed in accordance with the Tenant Construction and Alteration Process (<https://www.panynj.gov/port-authority/en/business-opportunities/tenant-construction-and-alteration-process.html>); or
- (c) Any other method of refueling must be approved by the Manager.

SUBRULE 34-260: ABANDONED VEHICLES

Any vehicle of any description which shall be left unclaimed for a period of twenty-four (24) hours at a terminal or upon a Marine Terminal Highway, may be towed, parked, garaged or stored at the risk and expense of the owner.

SUBRULE 34-265: ABANDONED VEHICLES - DISPOSITION

Any such vehicle not claimed by the owner thereof at the expiration of thirty (30) days shall be disposed of by the Port Authority in the manner provided by law.

SUBRULE 34-270: VEHICLES - SPEED LIMITS

Vehicles at a terminal shall be operated in strict compliance with speed limits prescribed by the Port Authority as indicated by posted traffic signs.

No vehicle shall be driven on any mooring facility at a greater speed than twelve (12) miles per hour. For speed limits at Port Newark, Elizabeth Port Authority Marine Terminal and Port Jersey Marine Terminal, see maps in the appendix.

SUBRULE 34-275: PARKING

No person shall park a vehicle within any public vehicular parking area, including the electric vehicle charging area, unless otherwise authorized by the Port Authority, or leave a vehicle unattended if the area is designated as a non-standing area. Vehicles left unattended may be towed and fined at the owner's expense.

SUBRULE 34-276: VEHICLE PARKING - UNAUTHORIZED

Vehicles at a terminal shall be parked in strict compliance with posted signs. Vehicles parked in violation of posted signs, in addition to other penalties, may be towed away and stored at the risk and expense of the owner thereof.

SUBRULE 34-280: VEHICLE OR MATERIAL HANDLING EQUIPMENT - PERMIT TO USE

No vehicle or motorized equipment, including but not limited to Material Handling Equipment used or intended for use in the handling of waterborne freight in or upon any Port Authority Marine Terminal, may operate unless both the equipment and its operator are appropriately registered and licensed by the respective authorized state agency.

The Port Authority may authorize the operation of motor vehicles with a gross vehicle weight rating or gross vehicle weight of more than 4,536 kilograms (10,000 pounds), any motor vehicle that meets the US DOT's requirements for a Commercial Driver's License for operation, or any motor vehicle designed to transport 16 or more passengers, upon a public wharf, public mooring facility, public cargo facility, public storage area or facility or air terminal highway or marine terminal highway at any Port Authority Marine Terminal.

Such authorizations described in this rule must be specific to the motor vehicle or motorized equipment itself and must be confirmed in writing by the Special Operations Division, Commercial Vehicle Inspection Unit of the Port Authority Police Department. Confirmation must be carried by the person(s) and/or within the vehicle(s)/equipment and must be presented to Port Authority personnel upon request.

SUBRULE 34-282 : SNOW AND ICE REMOVAL

Agents, stevedores, and all affiliated parties conducting business at a public berth during winter weather conditions shall be responsible for clearing any and all snow and ice that has accumulated from their designated berth areas for the full duration of their authorized presence within the berth area.

Noncompliance may result in additional charges commensurate with the cost associated with the Port Authority clearing the snow and ice, as safety is a top priority for all individuals utilizing the public berth.

SUBRULE 34-290: STATE LEGISLATION

This legislation was enacted by the States of New York and New Jersey, effective June 13, 1951, and amended in part by legislation enacted by the State of New Jersey, effective April 9, 1991. *(See Chapter 207, Laws of New York, 1952, Chapter 205, Laws of New Jersey, 1951, and Chapter 91, Laws of New Jersey, 1991.)*

1. The Port of New York Authority (hereinafter called the “Port Authority”) having duly adopted the following rules and regulations governing traffic on air terminal highways and marine terminal highways in the air terminals and marine terminals operated by it within the territorial limits of the State of New Jersey, hereinafter set forth in this section, the penalties and procedures for their enforcement prescribed in sections two, three and four shall apply to violations thereof:

Rules and Regulations Governing Traffic on Highways in Port Authority Air and Marine Terminals

(1) The following terms as used herein shall have the indicated meanings:

“**Air terminals**” shall mean developments operated by the Port Authority consisting of runways, hangars, control towers, ramps, wharves, bulkheads, buildings, structures, parking areas, improvements, facilities or other real property necessary, convenient or desirable for the landing, taking off, accommodation and servicing of aircraft of all types, including but not limited to airplanes, airships, dirigibles, helicopters, gliders, amphibians, seaplanes, or any other contrivance now or hereafter used for the navigation of or flight in air or space, operated by carriers engaged in the transportation of passengers or cargo, or for the loading, unloading, interchange or transfer of such passengers or their baggage, or such cargo, or otherwise for the accommodation, use or convenience of such passengers, or such carriers or their employees, or for the landing, taking off, accommodation and servicing of aircraft owned or operated by persons other than carriers.

“**Air terminal highway**” shall mean and include those portions of an air terminal designated and made available temporarily or permanently by the Port Authority to the public for general or limited highway use.

“**Marine terminals**” shall mean developments operated by the Port Authority consisting of one or more piers, wharves, docks, bulkheads, slips, basins, vehicular roadways, railroad connections, side tracks, sidings or other buildings, structures, facilities or improvements, necessary or

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convenient to the accommodation of steamships or other vessels and their cargoes or passengers.

“Marine terminal highway” shall mean and include those portions of a marine terminal designated and made available temporarily or permanently by the Port Authority to the public for general or limited highway use.

“Traffic” shall mean and include pedestrians, animals and vehicles.

(2) No vehicle shall be operated on any air terminal highway or marine terminal highway carelessly or negligently, or in disregard of the rights or safety of others, or without due caution and circumspection, or at a speed or in a manner so as to endanger unreasonably or to be likely to endanger unreasonably persons or property, or while the operator thereof is under the influence of intoxicating liquors or any narcotic or habit-forming drug, nor shall any vehicle be operated thereon if it is so constructed, equipped or loaded as to endanger unreasonably or to be likely to endanger unreasonably persons or property.

(3) All persons on any air terminal highway or marine terminal highway must at all times comply with any lawful order, signal or direction by voice or hand of any member of the Port Authority police force. When traffic is controlled by traffic lights, signs or by mechanical or electrical signals, such lights, signs and signals shall be obeyed unless a Port Authority police officer directs otherwise.

(4) Unless otherwise directed, all vehicles on any air terminal highway or marine terminal highway shall at all times stay to the right of the center of the roadway, except in the case of one-way roadways; slow-moving vehicles shall remain as close as possible to the right-hand edge or curb of the roadway; and where a roadway is marked with traffic lanes, vehicles shall not cross markings.

(5) No person shall operate a motor vehicle on an air terminal highway or marine terminal highway unless he is duly authorized to operate such vehicle on State and municipal highways in the State in which such air terminal highway or marine terminal highway is located, or unless he is especially authorized by the Port Authority to operate motor vehicles on such air terminal highway or marine terminal highway. No motor vehicle shall be permitted on any air terminal highway or marine terminal highway unless it is registered in accordance with the provisions of the law of the State in which such air terminal highway or marine terminal highway is located, or unless it is especially authorized by the Port Authority to be operated on such air terminal highway or marine terminal highway.

(6) The operator of any vehicle involved in an accident on an air terminal highway or marine terminal highway which results in injury or death to any person or damage to any property shall immediately stop such vehicle at the scene of the accident, render such assistance as may be needed, and give their name, address and operator's license and registration number to the person injured or to any officer or witness of the injury. The operator of such vehicle shall make a report of such accident in accordance with the law of the State in which such accident occurred.

(7) No person shall transport on any air terminal highway or marine terminal highway any dynamite, nitroglycerine, black powder, fireworks, blasting caps or other explosives, gasoline, alcohol, ether, liquid shellac, kerosene, turpentine, formaldehyde or other inflammable or combustible liquids, ammonium nitrate, sodium chlorate, wet hemp, powdered metallic magnesium, nitrocellulose film, peroxides or other readily inflammable solids or oxidizing materials, hydrochloric acid, sulfuric acid or other corrosive liquids, prussic acid, phosgene,

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arsenic, carbolic acid, potassium cyanide, tear gas, lewisite, or any other poisonous substances, liquids or gases, or any compressed gas, or any radioactive article, substance or material, at such time or place or in such manner or condition as to endanger unreasonably or as to be likely to endanger unreasonably persons or property; nor shall any person park any vehicle, or permit the same to remain halted on any air terminal highway or marine terminal highway containing any of the foregoing, at such time or place or in such manner or condition as to endanger unreasonably or as to be likely to endanger unreasonably persons or property.

(8) No person shall park a vehicle or permit the same to remain halted on any air terminal highway or marine terminal highway except at such places and for such periods of time as may be prescribed or permitted by the Port Authority.

(Codified at N.J.S.A. 32:1-154.18; N.Y. Unconsol. Law § 6831 (McKinney).)

If the violation within the State of any of the rules and regulations set forth in section one hereof,¹ would have been a violation of law or ordinance if committed on any public road, street, highway or turnpike in the municipality in which such violation occurred, it shall be tried and punished in the same manner as if it had been committed in such municipality.

(Codified at N.J.S.A. 32:1-154.19; N.Y. Unconsol. Law § 6832 (McKinney).)

Notwithstanding the provisions of section two hereof,² if the violation within the State of the rule and regulation numbered seven and set forth in section one hereof shall result in injury or death to a person or persons or damage to property in excess of the value of five thousand dollars (\$5,000.00), such violation shall constitute a high misdemeanor.

(Codified at N.J.S.A. 32:1-154.20; N.Y. Unconsol. Law § 6833 (McKinney).)

Except as provided in sections two and three hereof,³ any violation within the State of any of the rules and regulations set forth in section one hereof, shall be punishable by a fine not exceeding five hundred dollars (\$500.00) or by imprisonment not exceeding sixty days or by both such fine and imprisonment. Such a violation shall be tried in a summary way and shall be within the jurisdiction of and may be brought in the Superior Court or municipal court of the municipality in which the offense was committed. The rules of the Supreme Court shall govern the practice and procedure in such proceedings. Proceedings under this section may be instituted on any day of the week, and the institution of the proceedings on a Sunday or a holiday shall be no bar to the successful prosecution thereof. Any process served on a Sunday or a holiday shall be as valid as if served on any other day of the week.

(Codified at N.J.S.A. 32:1-154.21; N.Y. Unconsol. Law § 6834 (McKinney).)

The penalties above prescribed shall not preclude the Port Authority from excluding from any air terminal highway or marine terminal highway, permanently or for a specified time, all vehicles violating any of the rules and regulations set forth in section one hereof,⁴ as well as other vehicles owned or operated by the owner or operator of such vehicle.

(Codified at N.J.S.A. 32:1-154.22; N.Y. Unconsol. Law § 6835 (McKinney).)

Nothing herein contained shall be construed to affect, diminish or impair the power of this State to enact any law, or to impair or diminish, or as recognition of the impairment or diminution of any power of this State, legislative or otherwise, with respect to the Port Authority, its properties, or persons or property thereon.

(Codified at N.J.S.A. 32:1-154.23; N.Y. Unconsol. Law § 6836 (McKinney).)

This act⁵ shall take effect upon the adoption by the States of New Jersey and New York of concurrent legislation providing that either State, without the consent or concurrence of the other State, may from time to time prescribe, amend, modify or rescind penalties for violations within its territorial limits of any rule or regulation, otherwise authorized, of the Port of New York Authority, and procedures for the enforcement of such penalties; but if the States of New Jersey and New York shall have already enacted such legislation, this act shall take effect immediately.

(Codified at N.J.S.A. 32:1-154.24; N.Y. Unconsol. Law § 6837 (McKinney).)

¹ N.J.S.A. § 32:1-154.18

² N.J.S.A. § 32:1-154.19

³ N.J.S.A. §§ 32:1-154.19, 32:1-154.20

⁴ N.J.S.A. § 32:1-154.18

⁵ N.J.S.A. §§ 32:1-154.18 to 32:1-154.24

⁶ N.J.S.A. § 32:1-146.4

The Port of New York Authority (hereinafter called the “Port Authority”) having duly adopted the following rule and regulation, hereinafter set forth in this section, in relation to smoking at, on, or in air terminals and marine terminals operated by it within the territorial limits of the State of New Jersey, the penalties and procedures for its enforcement prescribed in section two shall apply to violations thereof.

(1) No person shall smoke, carry or possess a lighted cigarette, cigar, pipe, match, or other lighted instrument capable of causing naked flame in or about any area, building or appurtenance of an air terminal, owned or operated by the Port Authority, or in or upon any area, bulkhead, dock, pier, wharf, warehouse, building, structure, or shed of a marine terminal, owned or operated by the Port Authority, where smoking has been prohibited by the Port Authority and where appropriate signs to that effect have been posted, or on the open deck of any ship, lighter, car float, scow or other similar floating craft or equipment when berthed or moored at such dock, wharf, pier or to a vessel made fast thereto.

(Codified at N.J.S.A. 32:1-146.4; N.Y. Unconsol. Law § 6851 (McKinney).)

Any violation within the State of the rule and regulation set forth in section one⁶ hereof shall be punishable, for a first offense, by a fine of not more than fifty dollars (\$50.00) or imprisonment for not more than thirty days or by both such fine and imprisonment; for a second offense, by a fine of not less than twenty-five dollars (\$25.00) nor more than one hundred dollars (\$100.00) or imprisonment for not more than sixty days or by both such fine and imprisonment; for a third or any other subsequent offense, by a fine of not less than fifty dollars (\$50.00) nor more than two hundred dollars (\$200.00) or by imprisonment for not more than sixty days or by both such fine and imprisonment. Such a violation shall be tried in a summary way and shall be within the jurisdiction of and may be brought in the Superior Court or municipal court where the offense was

committed. The rules of the Supreme Court shall govern the practice and procedure in such proceedings. Proceedings under this section may be instituted on any day of the week, and the institution of the proceedings on a Sunday or a holiday shall be no bar to the successful prosecution thereof. Any process served on a Sunday or a holiday shall be as valid as if served on any other day of the week.

(Codified at N.J.S.A. 32:1-146.5; See also N.Y. Unconsol. Law § 6852 (McKinney).)

The Port of New York Authority (hereinafter called the “Port Authority”) having duly adopted the following rules and regulations, hereinafter set forth in this section, in relation to peddling, soliciting of business, entertaining, begging or loitering at, on or in air, bus or marine terminals operated by it within the territorial limits of the State of New Jersey, the penalties and procedures for its enforcement prescribed in section two shall apply to violations thereof.

(1) No person, unless duly authorized by the Port Authority, shall, in or upon any area, platform, stairway, station, waiting room or any other appurtenance of an air or bus terminal, owned or operated by the Port Authority, or in or upon any area, bulkhead, dock, pier, wharf, warehouse, building, structure, shed, waiting room or any other appurtenance of a marine terminal, owned or operated by the Port Authority.

- a. sell, or offer for sale any article of merchandise; or
- b. solicit any business or trade, including the carrying of baggage for hire, the shining of shoes or bootblackening; or
- c. entertain any persons by singing, dancing or playing any musical instrument; or
- d. solicit alms.

(2) No person, who is unable to give satisfactory explanation of his presence, shall loiter in or about any toilet, area, station, station platform, waiting room or any other appurtenance of an air or bus terminal, owned or operated by the Port Authority, or in or about any toilet, area, bulkhead, dock, pier, wharf, warehouse, building, structure, shed, waiting room or any other appurtenance of a marine terminal, owned or operated by the Port Authority.

(Codified at N.J.S.A. 32:1-146.6.)

(3) Any violation within the State of these rules and regulations set forth in section one hereof shall be punishable by a fine not exceeding ten dollars (\$10.00) or by a term of imprisonment not exceeding 30 days, or by both such fine and imprisonment, except that a violation of these rules and regulations related to the unauthorized offering, soliciting, or providing of ground transportation services or business shall be punishable by a fine of not less than \$500 or more than \$1,000 or by a term of imprisonment not exceeding 30 days or by both such fine and imprisonment. A second or subsequent offense related to the unauthorized offering, soliciting or providing of ground transportation services or business shall be punishable by a fine of not less than \$750 or more than \$1,500 or by a term of imprisonment not exceeding 90 days, or by both such fine and imprisonment. Such a violation shall be tried in a summary way and shall be within the jurisdiction of and may be brought in the Superior Court or municipal court where the offense was committed. The rules of the Supreme Court shall govern the practice and procedure in such proceedings. Proceedings under this section may be instituted on any day of the week, and the institution of the proceedings on a Sunday or a holiday shall be no bar to the successful

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prosecution thereof. Any process served on a Sunday or a holiday shall be as valid as if served on any other day of the week.

(Codified at N.J.S.A. 32:1-146.7.)

SECTION C

DOCKAGE - INSTRUCTIONS

SUBRULE 34-305: DOCKAGE - DEFINITION OF

The charge assessed against a vessel for berthing at a wharf, pier or for mooring to a vessel so berthed.

SUBRULE 34-310: DAY - DEFFINITION OF

A period of twenty-four hours beginning at midnight, or any fraction thereof, except that for the purpose of computing dockage charges, a day shall mean a period of twenty-four hours from the recorded time of a vessel's arrival, or any fraction thereof.

SUBRULE 34-315: DAY - COMPUTATION

In computing a day of twenty-four hours, for the purpose of determining the charges established in this section, the Port Authority may allow a period not to exceed thirty minutes additional time upon written request of the owner, operator or general agent of the vessel if for any reason the vessel is unable to leave the berth before the expiration of the twenty-four-hour period.

SUBRULE 34-320: MOORING FACILITIES - DEFINITION OF

All piers and wharves at Port Authority Marine Terminals.

SUBRULE 34-325: MOORING FACILITIES - INGRESS AND EGRESS

Officers, crew members, stevedores and other persons doing business in connection with watercraft moored at a terminal or its cargo may use the mooring facilities and driveways as a means of access between the watercraft and the public streets only in accordance with the rules prescribed by the Port Authority, except as provided in existing leases.

SUBRULE 34-330: MOORING FACILITIES - CONDITION FOR USE

The mooring of watercraft at a terminal shall constitute an agreement by the owner, operator and master to conform to the regulations and to all orders and instructions of the Port Authority.

SUBRULE 34-335: PUBLIC WHARF - DEFINITION OF

A wharf, pier, or other portion of the terminal, designated and operated temporarily or permanently by the Port Authority as a public wharf for the mooring of watercraft, the loading and unloading of passengers, and the loading, unloading, handling and holding of cargo.

SUBRULE 34-340: USE OF PUBLIC WHARVES

No watercraft shall be docked or berthed at or made fast to any public wharf except upon the payment of such wharfage, dockage, mooring or other charges as may from time to time be prescribed by the Port Authority.

SUBRULE 34-345: WATERCRAFT - DEFINITION OF

All vessels, barges, floating structures or other devices which are or may be used for the carriage, transportation or handling of persons or property on or by water.

SUBRULE 34-350: APPLICATION OF RATES

Rates in this section apply except where otherwise specifically provided in an existing lease or permit.

SUBRULE 34-355: BERTH ASSIGNMENT PERMIT - RIGHTS GRANTED

The Port Authority will issue a Berth Assignment Permit for the use of a berth or berths at a Marine Terminal. Unless otherwise provided, a Berth Assignment Permit shall include only the right to dock watercraft owned or operated by the permittee or by the company or companies of which the cargo, supplies and passengers are under their care, custody, and control, and to use a portion of the cargo facilities in connection therewith.

SUBRULE 34-356: BERTH ASSIGNMENT APPLICATION – DEFINED

A request from a vessel or stevedore, or their representative to the Port Authority for permission to use a berth at a Marine Terminal for a specified period of time for the loading and unloading of cargo or passengers.

SUBRULE 34-357: DECLARATION OF SECURITY – DEFINED

An agreement executed between the responsible vessel and Facility Security Officers that provides a means for ensuring that all shared security concerns are properly addressed, and security will remain in place throughout the time a vessel is moored to the facility.

SUBRULE 34-360: BERTH ASSIGNMENT APPLICATION

Applications for such permits shall be made electronically via the Port Authority's on-line Berth Assignment Application system at <https://app.oceansmart.com/app/home>. The Port Authority requires the party requesting Berth Assignment Application (Berth Applicant) for vessels docked at Port Authority Marine Terminals be fully responsible for all vessel expenses accrued. This will include but is not limited to security guard coverage, dockage, wharfage and water, at designated berths. The Port

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Authority will provide billings for such services. For imports, vessel agents must review and complete Berth Application Assignments within 5 days of the vessel departure. For exports, vessel agents must do so within 10 days of the vessel departure.

Failure to comply may result in an additional cost of \$100 per day, assessed for each Berth Application not closed within the specified timeframe

SUBRULE 34-361: BERTH ASSIGNMENT APPLICATION FEE

When a Berth Assignment Application is submitted via <https://app.oceansmart.com/app/home>; no charge will be assessed

When Berth Assignment Application is not submitted via <https://app.oceansmart.com> at least 4 days prior to the estimated arrival of the vessel, a charge will be assessed. Please refer to Section “L” for the Schedule of Rates and Charges.

SUBRULE 34-362: SECURITY GUARD SERVICES FOR BERTH ASSIGNMENT PERMIT – DEFINED

The Port Authority assigns a security guard service to cover each berth for the duration of a Berth Assignment Permit. Security guards, and any necessary supervisory coverage, are assigned on an hourly basis and are assigned to cover the berth at least one hour prior to the first docking line being secured and at least one hour after the last docking line has been released. The Berth Applicant is responsible for all fees or charges for the security guard services. Security guard fees are assessed based on the estimated time of vessel arrival and departure as submitted in the Berth Assignment Permit. These estimated times will be used to schedule coverage, and the applicant will be billed accordingly, regardless of whether the full scheduled hours are used. Should actual operations require additional time beyond the estimated schedule, the Berth Applicant will be responsible for all additional charges incurred. Overtime rates are charged starting at 12:01 a.m. Saturday morning and ending Sunday night at 11:59 p.m. Overtime rates will also be charged during ILA holidays and when an individual exceeds 40 hours for a given workweek, or eight (8) hours for a given shift.

SUBRULE 34-363: SECURITY GUARD SERVICES FOR BERTH ASSIGNMENT PERMIT – FEES

The Authority may require that any vessel, which expects to have visitors of any kind, hire additional security guards. At elevated MARSEC levels, an additional security guard(s) would be required of all vessels and would serve as the escort. Please refer to Section “L” for the Schedule of Rates and Charges.

SUBRULE 34-365: BERTH ASSIGNMENT PERMIT - ITEM FOR FILING AND INFORMATION

All persons desiring a berth for any watercraft at a Port Authority Marine Terminal shall, at least four (4) days prior to the estimated arrival of such watercraft, apply for a Berth Assignment Permit by providing the information set forth below:

The following information shall be furnished:

- (a) Name and address of applicant;
- (b) Name of watercraft's owner or operator;
- (c) Contact name and 24-hour phone number;
- (d) Name of watercraft;
- (e) Length of watercraft overall;
- (f) Beam of watercraft;
- (g) Arrival draft of watercraft;
- (h) Departure draft of watercraft;
- (i) Gross registered tonnage of watercraft;
- (j) Terminal and berth number;
- (k) Estimated date and time of arrival of watercraft;
- (l) Estimated date and time of departure of watercraft;
- (m) Amount of cargo (in tons) to be loaded or discharged;
- (n) Type of cargo to be loaded or discharged, including the number of vehicles by emission type, if any, such as fuel, electric or hybrid;
- (o) Name of stevedore;
- (p) Name of entity responsible for all billings, e.g. dockage, wharfage, etc.;
- (q) Name of Vessel Security Officer;
- (r) Last port of call;
- (s) Security level of vessel;
- (t) 24-hour Contact phone, fax, or email for vessel;
- (u) Security level of vessel at last port of call
- (v) Does vessel have a valid International Ship Security Certificate; and
- (w) Fire Control Plan – provide an electronic copy via Ocean Smart and maintain a physical copy of the plan aboard vessel to present to emergency responders upon request. It is the responsibility of the berth applicant to ensure that an up-to-date Fire Control Plan is maintained and uploaded.

A Berth Assignment Application can be submitted electronically via <https://app.oceansmart.com>

When a Berth Assignment Application is not submitted electronically, it must be submitted between the hours of 8:00 AM and 4:00 PM on a port business day to the appropriate address noted below:

Manager -Marine Terminals
260 Kellogg Street
Port Newark, NJ 07114
Email address: PortofNYNJ@panynj.gov

The request, if made orally, shall promptly be confirmed in writing.

Any changes to the Berth Assignment Permit being made after 3:00 PM on the port business day

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prior to the estimated arrival of the watercraft cannot be made electronically and must be made through the Facility Manager or their designee. For any changes to a Berth Assignment Permit after 3:00 PM on the port business day prior to the estimated arrival of the watercraft, the person who received the Berth Assignment Permit will continue to be liable and billed for all necessary charges from the original permit, including but not limited to billings for security guard services, dockage, wharfage, and water at designated berths.

SUBRULE 34-366: BERTH ASSIGNMENT PERMIT FOR SPECIAL CARGO /HEAVY LIFT CARGO

The Manager must receive Berth Assignment Applications for all multi-modal or heavy lift moves at public berths at least five port business days before the cargo is placed on the berth. The party performing the lift is responsible for submitting the Berth Assignment Application and for all Port Authority charges associated with the lift. Applicants and/or companies that fail to receive Port Authority approval in advance of the cargo arriving on the berth will be billed based on Subrule 34-096.

SUBRULE 34-367: BERTH ASSIGNMENT PERMIT FOR SPECIAL CARGO – FEES

Berth Assignment Permit for Special Cargo Fee. This permit fee shall apply for each 24-hour period or part thereof for all multi-modal moves at public berths as described in Subrule 34-366. The permit fee shall apply for the period of time during which the lift is performed as well as any time the Special Cargo is on the berth prior to or after the lift. Please refer to Section “L” for the Schedule of Rates and Charges.

SUBRULE 34-370: BERTH ASSIGNMENT PERMITS - SMALL CRAFT APPLICATIONS

If a berth is desired for working railroad floating equipment, lighters, barges, and other small craft on a temporary basis, application shall be made to the Manager.

SUBRULE 34-375: BERTH ASSIGNMENT PERMITS - LOCATION OF BERTH

No watercraft shall be docked or berthed at or made fast to a public wharf or in any dock, or other waterway adjacent to any such structure, except at the location assigned to such watercraft by the Port Authority, or in such manner as to endanger unreasonable or be likely to endanger unreasonable persons or property.

SUBRULE 34-385: CHARGES - RESPONSIBILITY FOR

Charges for dockage are assessed against watercraft, and the operator, owner and general agent as well as the watercraft shall be liable therefore. All charges are payable in United States funds at the Office of the Treasurer of the Port Authority.

SUBRULE 34-390: CHARGES - SMALL CRAFT, RESPONSIBILITY FOR

In the case of watercraft of 220 feet in length or under, charges for dockage are assessed against the vessel's agent, owner or operator.

SUBRULE 34-400: BERTH USAGE: VERIFICATION OF CARGO

As a condition to use by any watercraft at any of the mooring facilities or any other facilities at a terminal, the Manager or other duly authorized representative of the Port Authority must be permitted to go aboard such watercraft to ascertain the kind and quantity of cargo thereon, any other necessary information, and whether the regulations of the Port Authority are being complied with.

All persons who have received a Berth Assignment Permit **must** submit a completed certified and valid Vessel Billing Invoice within five (5) days of vessel departure. Failure to submit this certified and valid information within the time period will prevent such persons from receiving additional Berth Assignment Permits until such time as the necessary information is submitted and accepted by the Port Authority.

SUBRULE 34-405: BERTH USAGE - SECURING WATERCRAFT

All persons are prohibited from making fast any rope to any mooring facilities, except to the mooring bollards or cleats provided for the purpose.

SUBRULE 34-410: BERTH USAGE - MEASUREMENT OF VESSELS

The Manager shall have the right to measure all watercraft when deemed necessary for the purpose of ascertaining dockage charges.

SUBRULE 34-415: BERTH USAGE - EMERGENCY WATCH

Every self-propelled watercraft must at all times have on board a person in charge with authority to take such action in any emergency as may be required.

SUBRULE 34-420: BERTH USAGE - SHIP'S DOCUMENTS

The master of any watercraft berthed at a terminal shall, upon demand, exhibit the enrollment, license or other document of such watercraft showing tonnage; and the owner, agent, manager or master of any watercraft shall, upon demand, furnish a copy of the manifest or bills of lading for cargo discharged and loaded.

SUBRULE 34-425: BERTH USAGE - REMOVAL OF WATERCRAFT

Every master or person in charge of a watercraft docked or berthed at a public wharf shall remove their watercraft when ordered to do so by the Port Authority.

SUBRULE 34-430: BERTH USAGE - RAISING OF VESSELS

In the event that a watercraft shall sink or submerge at a terminal, the owner, agent or permittee shall, at their own expense, cause such watercraft to be raised and immediately removed from the terminal.

SUBRULE 34-435: BERTH USAGE - SPEED RESTRICTIONS

No watercraft shall be operated at a speed or in a manner which endangers unreasonably or is likely to endanger unreasonably persons or property.

SUBRULE 34-440: BERTH USAGE - MOORING AND CARGO HANDLING TACKLE AND LABOR

Each permittee shall, at their own cost and expense, keep clean the premises covered by his permit, and provide all tackle, gear and labor for the docking or mooring of such watercraft at a terminal, and shall also provide at his own cost and expense, such appliances and employ such persons as he may require for the loading and unloading of passengers and cargo.

SUBRULE 34-445: RESPONSIBILITY FOR INJURIES AND DAMAGES

In the event any damage is done to any mooring facility or other facility at a terminal, the person or person responsible for, causing, or in any way connected with such damage, and the person to whom a berth at such mooring facility is assigned or by whom it is being used, and the master, owner, operator or agent of any watercraft, vehicle or other instrumentality involved in such damage shall make a full report to the Port Authority, giving the date and hour damage occurred, the names and addresses or descriptions of witnesses and other persons, watercraft, or instrumentalities involved in the damage, and all other available pertinent facts and information.

SUBRULE 34-450: INDEMNITY

The holder of a permit for use of a berth at a terminal shall indemnify and save harmless the Port Authority, its commissioners, officers and/or employees, from any and all claims and demands including, but without limitation thereto, claims and demands of third persons caused by the negligent acts or omissions of the Permittee. This provision is subject to SUBRULE 34-001.

SUBRULE 34-455: BURNING AND WELDING

No repairs to watercraft and no gas welding or cutting shall be permitted without a hot work permit (Port Authority Form 2133).

SUBRULE 34-461: LENGTH OVER ALL

The latest length over all of a vessel shall be stated in the World Shipping Register or on documentation issued by the vessel's ship classification society.

SUBRULE 34-465: FIRE SIGNAL

In the event a vessel (while in a Marine Terminal) is in distress and requires assistance, such watercraft will sound the ship's whistle for a minimum of ten seconds followed by the continuous ringing of the general alarm for a minimum of ten seconds indicating fire on board or at the dock to which the watercraft is moored. Such signal may be repeated at intervals to attract attention, and is not a substitute for, but may be used in addition to other means for reporting a fire. The Master of the vessel (or designee) must make additional notifications to the U.S. Coast Guard and must notify the Port Authority Police Department and designated facility points of contact.

SUBRULE 34-472: SELF PROPELLED VESSELS – DOCKAGE

Please refer to Section "L" for the Schedule of Rates and Charges.

SUBRULE 34-482: NON-SELF- PROPELLED VESSELS – DOCKAGE

Please refer to Section "L" for the Schedule of Rates and Charges.

SUBRULE 34-483: SPECIAL EVENTS VESSELS

Vessels associated with special events, as determined by the Manager, and not typically engaged in waterborne commerce, see SUBRULE 34-750.

SECTION D

WHARFAGE -- INSTRUCTIONS

SUBRULE 34-505: WHARFAGE - DEFINITION OF

A charge assessed against the cargo or vessel on all cargo passing or conveyed over, onto, wharves or between vessels (to or from barge, lighter, or water), when berthed at wharf. Wharfage is solely the charge for use of wharf and does not include charges for any other service. Wharfage shall be based on the cube or weight as stated on the manifest.

SUBRULE 34-510: WHARFAGE - NON-APPLICATION

Wharfage will not be assessed against intra-harbor watercraft discharging or loading non-special cargo destined to or from oceangoing vessels where the oceangoing vessel is liable for the charge.

SUBRULE 34-515: BULK CARGO OR BALLAST - DEFINITION OF

Goods shipped liquid or dry in bulk, including such commodities as are loose or in mass and such commodities as must be pumped, shoveled, scooped, grabbed or forked in the loading or unloading and which are neither in packages, bundles nor in units which admit their being readily handled piece by piece.

SUBRULE 34-520: FOREST PRODUCTS - DEFINITION OF

Articles manufactured from wood, such as box or crate material, laths, pickets, piling, poles, posts, shingles, shooks, stakes, ties, etc.

SUBRULE 34-525: CARGO - DEFINITION OF

All merchandise, goods, articles, or whatever is transported or to be transported by watercraft.

SUBRULE 34-526: SPECIAL CARGO - DEFINITION OF

Special cargo are those products or items that utilize multi-modal moves on a public berth requiring the use of a floating or land-based crane and another form of transportation. Examples include but are not limited to: floating crane to/from railcar, MAFI trailer to/from railcar, boats in cradle to water, etc.

SUBRULE 34-530: CARGO - PLACEMENT OF

Cargo shall be placed only in or upon areas designated for that purpose by the Port Authority

SUBRULE 34-535: TON (WHEN USED WITH REFERENCE TO CARGO)

Except when otherwise specified: 2,240 pounds weight, or 40 cubic feet measurement, at the option of the Port Authority.

SUBRULE 34-540: CARGO HANDLING

Except when actually loading or discharging cargo to or from a watercraft lying alongside a mooring facility, no person, firm, or corporation shall place, leave or deposit such cargo, or any portion thereof, within six (6) feet of the edge of such mooring facility, or upon railroad tracks laid or constructed on any mooring facility.

SUBRULE 34-545: PASSENGERS - DEFINITION OF

Any persons, exclusive of watercrafts' officers and crew members, arriving from or departing by a watercraft operating in foreign, coastwise, or intercostal service, including excursion boats and yachts.

SUBRULE 34-550: CARGO FACILITIES - DEFINITION OF

a) PUBLIC CARGO FACILITIES

The cargo buildings and open areas at a marine terminal designated by the Port Authority for the handling of waterborne cargo and the holding of such cargo for further transportation.

b) LEASED CARGO FACILITIES

The cargo buildings and open areas at a marine terminal operated by firms, corporations, partnerships or individuals under agreements with the Port Authority and designated by the Port Authority from time to time for the holding of waterborne cargo for further transportation.

c) CONTAINER TERMINAL FACILITY

Container Terminal Facilities are leased cargo facilities used primarily for the purpose of receiving and delivery of containers for the loading or unloading to and from vessels.

d) INTERMODAL CONTAINER TRANSFER FACILITY

Intermodal Container Transfer Facilities are leased cargo facilities used primarily for the purpose of loading or unloading containers to/from railroad trains or rail cars.

SUBRULE 34-555: DANGEROUS CARGO - REMOVAL

Cargo consisting of hazardous materials, or having an offensive odor, or cargo which is liable to damage other cargo is subject to immediate removal by the Port Authority from a terminal or to locations within terminal premises, where such cargo will not endanger persons or property; in such cases removal will be at the expense and risk of the holder of the permit for the berth at which the watercraft is moored. This provision is subject to SUBRULE 34-001.

SUBRULE 34-560: MATERIAL HANDLING EQUIPMENT - PERMIT TO USE

No persons shall keep or store in or upon any public wharf, or facility at any Port Authority Marine Terminal, any equipment used or to be used by them in connection with the loading and unloading of waterborne freight to or from vehicles (other than railroad cars) except such carriers of freight by water, waterfront terminal operators and duly licensed stevedores, as may be authorized to do so by the Port Authority.

SUBRULE 34-565: CHARGES - RESPONSIBILITY FOR

Charges for wharfage are assessed against watercraft, and the operator, owner and general agent as well as the watercraft shall be liable therefor.

SUBRULE 34-570: CHARGES FOR SMALL WATERCRAFT - RESPONSIBILITY FOR

In the case of watercraft of 220 feet in length or under, charges for wharf usage are assessed against the vessel's owner, agent, or operator except wharfage applying to lumber and forest products, which are assessed against the owners thereof.

SUBRULE 34-575: CHARGES FOR FOREST PRODUCTS AND LUMBER - RESPONSIBILITY FOR

Charges for wharfage applying to lumber and forest products are assessed against the owners thereof.

SUBRULE 34-580: WHARFAGE - PASSENGER

No passengers shall be embarked or disembarked at, and no cargo, goods or merchandise shall be moved across or upon or placed upon or allowed to remain upon or removed from any public wharf without the payment of such wharfage or other fees or charges as may from time to time be prescribed by the Port Authority. No person shall refuse to pay or evade or attempt to evade the payment of such charges.

SUBRULE 34-585: WHARFAGE

The following charge is assessed when cargo passes over or through a mooring facility or passes over the side of a vessel for the unloading to or loading from other vessels. Please refer to Section "L" for the Schedule of Rates and Charges.

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SUBRULE 34-590: WHARFAGE – RATES

Please refer to Section “L” for the Schedule of Rates and Charges.

SUBRULE 34-595: SPECIAL CARGO MOVEMENTS

Unless covered by another Port Authority agreement, wharfage charges for special cargo movements such as oversized or heavy lifts, as determined by the Manager, will be assessed as per SUBRULE 34-750

SUBRULE 34-605: PASSENGER WHARFAGE

The following charge will be made against all vessels (exclusive of excursion boats or sight-seeing yachts), operating in foreign, coastwise or intercostal service, which embark or disembark passengers over the mooring facilities at a terminal. Please refer to Section “L” for the Schedule of Rates and Charges.

SECTION E

WHARF DEMURRAGE -- INSTRUCTIONS

SUBRULE 34-640: WHARF DEMURRAGE - DEFINITION OF

A charge assessed against cargo remaining in or on terminal facilities unless arrangements have been made for storage. This charge is in addition to the provision for Unleased Space, Subrule 34-135.

SUBRULE 34-645: APPLICATION OF CHARGES

Wharf demurrage will be charged on cargo remaining after the vessel leaves the berth.

SUBRULE 34-650: WHARF DEMURRAGE - RESPONSIBILITY FOR CHARGES

Charges for wharf demurrage are assessed against watercraft, and the operator, owner and general agent as well as the watercraft shall be liable therefore.

SUBRULE 34-655: WHARF DEMURRAGE - SMALL WATERCRAFT CHARGES, RESPONSIBILITY FOR

In the case of watercraft of 220 feet in length or under, charges for wharf demurrage are assessed against the vessel's owner, agent, or operator except wharf demurrage applying to lumber and forest products, which are assessed against the owners thereof.

SUBRULE 34-670: WHARF DEMURRAGE - REMOVAL OF CARGO

Unless arrangements have been made for the payment of wharf demurrage thereon, cargo intended for loading on a watercraft but not loaded thereon remaining on terminal premises may be piled or re-piled by the Port Authority to make space, or transferred to other locations at the terminal or removed from the terminal to public or private warehouses, at the risk of loss and expense of the holder of the permit for the berth at which the watercraft was moored. This provision subject to SUBRULE 34-001.

SUBRULE 34-675: WHARF DEMURRAGE ON CARGO

Please refer to Section "L" for the Schedule of Rates and Charges.

SECTION F

MISCELLANEOUS CHARGES

SUBRULE 34-685: MISCELLANEOUS CHARGES – WATER

Water carts are available from April 1 through November 30.

Damage to the water carts are the responsibility of the user and the repair costs will be billed to the user at the Port Authority's costs. Please refer to Section "L" for the Schedule of Rates and Charges.

SUBRULE 34-690: MISCELLANEOUS CHARGES - ELECTRICITY/LIGHTS

Please refer to Section "L" for the Schedule of Rates and Charges.

SUBRULE 34-695: MISCELLANEOUS CHARGES - ELECTRICITY RATES

Electricity will be furnished at the same rate as would be charged if supplied directly to the user by the local utility company.

SUBRULE 34-700: MISCELLANEOUS CHARGES - VESSEL FURNISHED CABLES

This service is currently discontinued

SUBRULE 34-705: MISCELLANEOUS CHARGES - ELECTRICITY TERMINAL FURNISHED CABLES

This service is currently discontinued.

SUBRULE 34-715: MISCELLANEOUS CHARGES - CAR LOADING AND UNLOADING

The Port Authority shall not be responsible for railroad car demurrage, nor delays in unloading inbound cars; nor for delays in obtaining cars for outbound shipments. This provision subject to SUBRULE 34-001.

SUBRULE 34-750: MISCELLANEOUS CHARGES - SERVICES AND RATES NOT SPECIFIED

Services and rates therefore not specifically provided for elsewhere shall be subject of special agreement with the Port Authority.

SUBRULE 34-751: LATE CHARGES

All charges published in this tariff shall be due and payable upon presentation of an invoice. Invoices not paid within thirty (30) calendar days of the invoice date will be subject to a fee of 0.8% on the outstanding balance and then every fifteen (15) days thereafter.

The Port Authority reserves the right to deny to anyone the use of any terminal until all past due accounts are paid, and to apply any payment received against the oldest outstanding invoices. Agents or representatives will be held fully responsible for all charges attributable to their action on behalf of their principals, in arranging services, facilities, equipment or other chargeable items, in accord with the rates therefore published in this tariff.

Delinquent invoice amounts plus late charges that are determined to be payable may be deducted by the Port Authority from any credits and/or discounts due to the debtor by the Port Authority.

Any account receivable in excess of thirty (30) days old is subject to the immediate withholding of all credits, discounts, subsidies, incentives, etc. whether or not related to the outstanding receivables, until such time as all receivables for the account are rendered current.

SUBRULE 34-752: NOTIFICATION OF DISPUTED INVOICES

Questions regarding the validity of invoice(s) must be submitted in writing to the Port Authority (address listed below) specifically noting the material errors and/or discrepancies with regard to the invoice(s), within 30 days from the date of the invoice(s). All disputes of invoices involving Berth Assignment Applications can be made by contacting the Marine Terminal Operations (nynjmtoperations@panynj.gov). If the material errors and/or discrepancies are not reported as stated herein, the invoice(s) shall be considered valid, due and payable.

The Port Authority of New York & New
Jersey Marine Terminals
260 Kellogg Street
Port Newark, NJ 07114

SUBRULE 34-753: BILLING REDUCTION ADJUSTMENT FEE

A billing adjustment resulting in a reduction of an issued billing invoice will be processed for a fee, if the requested adjustment is the result of erroneous or incorrect information provided to the Port Authority. All disputes of invoices must be provided for as noted in SUBRULE 34-752.

Please refer to Section “L” for the Schedule of Rates and Charges.

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SUBRULE 34- 766: INTERMODAL CONTAINER LIFT FEE – NON-APPLICATION

Intermodal container lift fee shall not be assessed against an intermodal container discharged from or loaded onto a railroad train for the sole purpose of being engaged in intra-harbor transit, when an intermodal container lift fee has already been charged to such intermodal container.

SUBRULE 34-800: SEA LINK – DEFINITION OF

Sea Link is a trucker identification system used for the interchange of containers between truckers/trucking companies and Container Terminals. Details for registration for this identification card can be obtained at the:

Truck Service Center (TSC)
1160 McLester St. Unit 3,
Elizabeth, NJ 07201.

For additional information, please access the Port website at:

www.panynj.gov/port/en/doing-business/port-security/accessing-our-port.html

SUBRULE 34-810: SEA LINK FEES

Truck drivers, or the truck company, pay transaction fees for their registration into the system. Transaction fees may include, but are not limited to: new card application, replacement of lost or damaged card, granting access of an existing truck driver to an additional trucking company, renewal of expired card, etc. For each transaction that results in a returned, non-sufficient funds, overdraft, or otherwise dishonored check, a processing fee of \$ 75.00 will be assessed against the truck driver or truck company for each corresponding transaction. Please refer to Section “L” for the Schedule of Rates and Charges.

SECTION G

DRAYAGE TRUCK REGISTRY

SUBRULE 34-1000: DRAYAGE TRUCK

“Drayage Truck” means any On-Road Vehicle with a Gross Vehicle Weight Rating of greater than 33,000 pounds serving Port Authority Terminals for the purpose of loading, unloading, or transporting cargo including containerized, bulk, break-bulk, and neo-bulk goods. For purposes of this Subrule, Dedicated Use Vehicles, Military Tactical Support Vehicles and Yard Trucks are excluded from the definition of Drayage Truck.

SUBRULE 34-1010: ON-ROAD VEHICLE

“On-Road Vehicle” means a vehicle that is designed to be driven on public highways and roadways and that is registered or capable of being registered with the controlling motor vehicle agency within the vehicle owner’s state of residence.

SUBRULE 34-1020: GROSS VEHICLE WEIGHT RATING

“Gross Vehicle Weight Rating” means the value specified by the manufacturer as the maximum design loaded weight of a single vehicle.

SUBRULE 34-1030: DEDICATED USE VEHICLES

“Dedicated Use Vehicles” are uni-body On-Road Vehicles that do not have separate tractors and trailers, including but not limited to auto transports, dedicated fuel delivery vehicles, concrete mixers, mobile cranes, and construction equipment.

SUBRULE 34-1040: MILITARY TACTICAL SUPPORT VEHICLES

“Military Tactical Support Vehicles” are vehicles that meet military specifications, are owned by the U.S. Department of Defense and/or the U.S. military services, and used in combat, combat support, combat service support, tactical or relief operations, or training for such operations.

SUBRULE 34-1050: YARD TRUCKS

“Yard Trucks” are off-road mobile utility vehicles used to carry cargo containers with or without chassis; also known as utility tractor rigs (UTRs), yard tractors, yard goats, yard hostlers, or prime movers.

SUBRULE 34-1060: ALTERNATIVE DRAYAGE TRUCKS

“Alternative Drayage Trucks” are Drayage Trucks with heavy-duty engines operating on liquefied or compressed natural gas, electricity or hybrid technology. Included are heavy-duty pilot ignition engines using an alternative fuel where diesel fuel is used for pilot ignition for an average ratio of no more than one-part diesel fuel to ten parts total fuel on any energy equivalent basis. Engines that can operate or idle solely on diesel fuel at any time do not meet this definition.

SUBRULE 34-1070: DIESEL FUEL

“Diesel Fuel” means any fuel that is commonly or commercially known, sold or represented by the supplier as diesel fuel, including any mixture of primarily liquid hydrocarbons – organic compounds consisting exclusively of the elements of carbon and hydrogen – that is sold or represented by the supplier as suitable for use in an internal combustion, compression-ignition engine.

SUBRULE 34-1072 : PORT TRUCK PASS

“PortTruckPass” or “PTP” is a service provided by Sustainable Terminal Services, Inc., a nonprofit corporation created by marine terminal operators to promote secure, environmentally sensitive, and efficient marine terminal operations in the Port of New York

SUBRULE 34-1080: DRAYAGE TRUCK REGISTRY

“Drayage Truck Registry” or “DTR” is a database that contains information on trucks that are authorized by the Port Authority to conduct business at Port Authority Terminals including:

- (a) Owner’s name, address, phone numbers, email address and fax number.
- (b) Drayage Truck vehicle make, model year, engine make, engine model, engine model year, vehicle identification number (VIN), Gross Vehicle Weight Rating, license number and state of issuance.

SUBRULE 34-1100: REGISTRATION IN DRAYAGE TRUCK REGISTRY (DTR)

All Drayage Trucks seeking entry onto any Port Authority Terminal shall be registered in the DTR prior to the date of entry. Registration in the DTR shall be in electronic format via the PortTruckPass (PTP) website (www.porttruckpass.com). In the event of a change to the information provided for registration in the DTR with respect to a registered vehicle, such information shall be amended within ten (10) calendar days of the change via the PortTruckPass website (www.porttruckpass.com). Supporting documentation may be required for verification purposes with regard to registration or amendment.

SUBRULE 34-1101: REGISTRATION IN DRAYAGE TRUCK REGISTRY (DTR)

Beginning July 2, 2023 at 12:01 AM, only Drayage Trucks that are equipped with an engine that meets or exceeds federal Environmental Protection Agency on-road emission standards for engine model year 2014 heavy-duty diesel-fueled shall be permitted to complete registration in the DTR via the PortTruckPass website (www.porttruckpass.com).

SUBRULE 34-1121 : GATE ACCESS

All Container Terminal Facilities shall have installed appropriate means of accessing the Port's Drayage Truck Registry to obtain relevant information to confirm a Drayage Truck's compliance with Container Terminal Facility access requirements under this tariff.

SUBRULE 34-1140: DRAYAGE TRUCK DEADLINE

Beginning July 2, 2023, at 12:01 AM, no Container Terminal Facility shall permit access into any Port Authority Terminal by:

- a) Any Drayage Truck that cannot be verified as compliant by reference to the Drayage Truck's records in the DTR, or
- b) Any Drayage Truck equipped with an engine of model year 1998 or older, or
- c) Any Drayage Truck that is not an Alternative Drayage Truck as defined in SUBRULE 34-1060.

Beginning May 1, 2027, at 12:01 AM, no Container Terminal Facility shall permit access into any Port Authority Terminal by:

- a) Any Drayage Truck that cannot be verified as compliant by reference to the Drayage Truck's records in the DTR, or
- b) Any Drayage Truck equipped with an engine of model year 1999 or older, or
- c) Any Drayage Truck that is not an Alternative Truck as defined in SUBRULE 34-1060.

Beginning May 1, 2028, at 12:01 AM, no Container Terminal Facility shall permit access into any Port Authority Terminal by:

- a) Any Drayage Truck that cannot be verified as compliant by reference to the Drayage Truck's records in the DTR, or
- b) Any Drayage Truck equipped with an engine of model year 2000 or older, or
- c) Any Drayage Truck that is not an Alternative Truck as defined in SUBRULE 34-1060.

SECTION H

CARGO FACILITY CHARGE

SUBRULE 34-1200: CARGO FACILITY CHARGE – DEFINITION OF CARGO SUBJECT TO FEE

This fee shall apply to all laden cargo containers, vehicles and bulk cargo, break-bulk cargo, general cargo, heavy lift cargo, and other special cargo discharged from or loaded onto vessels at Port Authority leased and public berths.

SUBRULE 34-1210: CARGO FACILITY CHARGE – RATES

Any containers larger than forty feet will be considered as the equivalent of two TEUs. Please refer to Section “L” for the Schedule of Rates and Charges.

SUBRULE 34-1220: CARGO FACILITY CHARGE

1. Definitions

- (a) “User” shall mean a user of cargo handling services.
- (b) “Terminal operator” shall mean a leased berth operator.

2. At all leased berths, each user is responsible for payment of the Cargo Facility Charge to the Port Authority, which will be collected by the terminal operator handling the user’s cargo for remittance to the Port Authority.

3. Lessees/Terminal Operators

(a) Reporting of Vessel Activity Data

- i. Each terminal operator shall provide to the Port Authority a Vessel Activity Report setting forth data necessary for determination of the amount of Cargo Facility Charge incurred by each user. Such report shall be submitted within 7 business days at the conclusion of each month following such activity and shall comply with sub-paragraph 3 (a) ii. of this Subrule.
- ii. Each Vessel Activity Report shall set forth the following for the month in which Cargo Facility Charges were incurred for each vessel call: vessel name; voyage #; service; user(s), including participating carriers whose cargo is carried on the vessel; date of arrival; date of departure; volume of cargo discharged from and/or loaded onto each vessel for each user (containers by size identifying loads versus empties and transshipped containers, number of vehicles, and/or metric tons of bulk cargo, break-bulk cargo, general cargo, heavy-lift cargo and other special cargo) and, the Cargo Facility Charge due for the current month for each

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cargo category. Such information is to be provided in both paper and electronic formats in accordance with any form or template that may be provided by the Port Authority from time to time. Such form or template is available through the office of the Manager.

- iii. Hard copy transmittals are to be accompanied by a statement certifying the truth and accuracy of the document. Submission of the Vessel Activity Report by electronic means shall constitute a statement that such submission is intended to be the equivalent of the submission of a paper document containing the same information, and that the placement of a name on such submission certifying the truth and accuracy of the document is intended to be equivalent to a handwritten signature.

(b) Billing and payment of Cargo Facility Charges

- i. On or about the first day of each month, the Port Authority shall issue a bill to each terminal operator based upon the Vessel Activity Report for the previous reporting period. Such bills shall set forth the Cargo Facility Charge with respect to cargo discharged from or loaded onto vessels within the leasehold area of the terminal operator for each user.
- ii. Within 30 days after the date of each bill described in 3 (b) i., each terminal operator shall (A) remit to the Port Authority the Cargo Facility Charge amount collected from each user as set forth in such bill, and (B) make a report to the Port Authority of every user who has failed to pay the Cargo Facility Charge set forth in such bill.
- iii. In the event of non-payment of any Cargo Facility Charges by a user for two consecutive Vessel Activity Reporting periods, the Port Authority shall issue a directive to every terminal operator prohibiting them from providing any service that would be subject to a Cargo Facility Charge to the delinquent user for a period from no later than 5 calendar days from the date of the directive until receipt of notice from the Port Authority that such unpaid Cargo Facility Charges have been paid.
- iv. Should any terminal operator provide service to a user in violation of the directive described in 3 (b) iii., such terminal operator shall become liable for, and shall be obligating itself to pay to the Port Authority, the full amount of the Cargo Facility Charges incurred by such user arising from services performed by such terminal operator on and after the date of the violation of the directive.

4. Public Berth Applicants

Each party responsible for payment to the Port Authority of all other charges associated with a vessel's use of a public berth shall pay to the Port Authority the Cargo Facility Charge set forth in the Port Authority's Tariff with respect to cargo discharged from or loaded onto a vessel. Such payments are to be paid directly to the Port Authority in the same manner as all other amounts paid to the Port Authority for use of a public berth.

5. Fee Exemptions

- (a) The following movements are fully or partially exempt from Cargo Facility Charge as set forth in the Port Authority's Tariff:
 - i. Fully exempt from fees: restows, shifts and empty containers.

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- ii. Partially exempt from fees: transshipped containers; a transshipped container is subject to a Cargo Facility Charge for only one move.

(b) In this section:

- i. “Restows” shall mean discharged containers arriving on a vessel and departing on the same vessel and as part of the same voyage.
- ii. “Shifts” shall mean containers that are moved from one location to another location on the same vessel without touching the ground.
- iii. “Transshipped containers” shall mean containers that are discharged from a vessel, placed on the terminal and loaded onto another vessel for further carriage as part of a single voyage and do not exit the terminal.
- iv. “Empty containers” shall mean containers not holding cargo.

SECTION I

MATERIAL HANDLING EQUIPMENT

SUBRULE 34-1300 : MATERIAL HANDLING EQUIPMENT

“Material Handling Equipment” or “MHE” shall mean any motorized equipment utilizing internal combustion engines and/or electric motors, that is used (1) to transport and handle passengers, luggage, ship’s stores, provisions, bunkers and cargo, and/or (2) to perform any other operation or function, including construction or maintenance, at a Marine Terminal, as defined in Subrule 34-035, or any other port facility leased from the Port Authority, including but not limited to intermodal rail yards, cruise terminals, warehouses and bulk facilities.

MHE includes, but is not limited to mobile harbor cranes, floating cranes, terminal tractors, rail mounted gantry cranes, forklifts, front loaders, bulldozers, sweepers, switcher locomotives, railcar movers, reach stackers, straddle carriers, refrigerated containers and Dedicated Use Vehicles.

SUBRULE 34-1305 :ZERO-EMISSION MHE

Zero-Emission MHE shall mean MHE that produces no tailpipe emission of criteria air pollutants, toxic air contaminants, and greenhouse gases, other than water vapor, when stationary or operating.

SUBRULE 34-1310: TIER

“Tier” is in reference to the U.S. Environmental Protection Agency designation of “Nonroad Compression- Ignition Engines: Exhaust Emission Standards” found in EPA-420-B-16-022.

“Tier 4 Final” is in reference to the most stringent or latest applicable phase-in emissions standards (in other words, the final Tier 4 emission standards that manufacturers use to certify their engines) established in “Nonroad Compression-Ignition Engines: Exhaust Emission Standards” found in EPA-420-B-16-022.

SUBRULE 34-1320: PRIMARY

“Primary” is defined as greater than 100 horsepower and 200 or more operating hours per year.

SUBRULE 34-1330: NEW MATERIAL HANDLING EQUIPMENT

Beginning January 1, 2022, at 12:01 AM, only MHE that meets or exceeds Tier 4 Final emission standards shall be permitted to be added to the existing fleet of MHE serving the Marine Terminals.

Beginning January 1, 2022, at 12:01 AM, any new ship-to-shore crane and rail-mounted gantry crane added to the existing fleet of MHE serving the Marine Terminals shall be zero-emission.

Beginning January 1, 2025, at 12:01 AM, any new terminal tractor added to the existing fleet shall be

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zero- emission subject to market availability and a Suitability Analysis, as defined in Subrule 34-1355.

SUBRULE 34-1340 : MATERIAL HANDLING EQUIPMENT DEADLINE

Beginning January 1, 2023, at 12:01 AM, all Primary Yard Trucks or terminal tractors shall meet or exceed Tier 3 emission standards.

Beginning January 1, 2023, at 12:01 AM, all other Primary MHE shall meet or exceed Tier 2 emission standards.

Beginning May 1, 2026, at 12:01 AM, all ship-to-shore crane and rail-mounted-gantry crane shall be zero-emission.

SUBRULE 34-1350: MATERIAL HANDLING EQUIPMENT INVENTORY, EMISSION AND FUEL CONSUMPTION RECORDS

Beginning January 1, 2022, all lessees, sublessees, and permittees doing business at a Marine Terminal, as defined in Subrule 34-035, or other port facilities, shall provide to the Port Authority an annual emissions and fuel consumption report for their MHE fleet, whether owned, leased, rented, or contracted, no later than April 15 each calendar year as well as an inventory of MHE in operation at a Marine Terminal no later than June 1 each calendar year. All reports and inventories must contain accurate information and be submitted in the correct format to meet the requirements found in the online reporting platform provided by the Port Authority. In the event a lessee, sublessee and/or permittee concludes business at a Marine Terminal before the annual deadline of providing either the annual emission and fuel consumption report or the inventory of MHE, a report and/or inventory for the relevant timeframe must be provided before concluding business.

SUBRULE 34-1355: SUITABILITY ANALYSIS

Beginning January 1, 2022, a Suitability Analysis must be submitted when a Primary MHE is added to an existing fleet. Zero-Emission MHE added to an existing fleet is exempt from this requirement.

The Suitability Analysis shall delineate operational feasibility and a cost-benefit comparison between any available zero-emission option and the internal combustion engine powertrain. At a minimum, the Suitability Analysis shall include a comparison of the following at the time the equipment is added to the fleet:

- duty cycle,
- power output (horsepower),
- fuel and energy consumption (gallons of diesel, kWh of electricity, or other appropriate units),
- infrastructure costs,
- equipment costs, and
- operational costs.

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SECTION J

CONTAINER IMBALANCE PROGRAM

SUBRULE 34-1400: CONTAINER IMBALANCE PROGRAM – PURPOSE AND NEED

Port efficiency and productivity is dependent on there being sufficient terminal space to accommodate all import demand, while ensuring that a trucker can return an empty container within the contractually required time. Ocean carriers must therefore proactively and regularly manage their inventory of empty containers on the Marine Terminals and nearby depots to ensure fluidity. The Port Authority may impose a container imbalance fee on Ocean Carriers for an excessive imbalance of containers at port facilities to compensate the Port Authority for services rendered to maintain good order and efficient operations and to mitigate the negative effects on other port facility users from accumulated empty containers. The proceeds of the container imbalance fee will be used to offset the costs (including staff costs) of providing additional storage capacity, managing public safety (including the costs of additional security services provided by the Port Authority Police Department) and managing the heavy truck volume which results from the accumulation of empty containers at port facilities and in the region. The container imbalance fee is also expected to provide a reasonable financial incentive to Ocean Carriers to manage their logistics operations to reduce the volume of idle cargo containers at the port.

SUBRULE 34-1410: DETERMINATION AND NOTICE

The container imbalance will be calculated twice per year, January 1st and July 1st, and a fee may be assessed for imbalances as calculated for the prior six-month period. Each ocean carrier is permitted to have an Allowable Imbalance within the Current Imbalance Period that is less than or equal to 4% of their Total Imported Container volume for the Current Imbalance Period. The fee will be charged on the Total Excessive Imbalance. This is an annual program that will remain in effect in perpetuity. The Total Excessive Imbalance will be calculated as per the formulation in SUBRULE 34-1430.

SUBRULE 34-1420: IMBALANCE FEE – RATE

Total Charge = “Total Excessive Imbalance” x \$100.00

SUBRULE 34-1430: CONTAINER IMBALANCE FEE – DEFINITIONS: CALCULATION OF TOTAL EXCESSIVE IMBALANCE FOR CURRENT IMBALANCE PERIOD

1- Definitions

“Container Imbalance Calculation Date” shall mean the two dates in a given year, January 1st and July 1st, that the container imbalance will be calculated.

“Current Imbalance Period” shall mean the six (6) months preceding the Container Imbalance Calculation Date— (1) January 1, 20## thru June 30, 20##, and (1) July 1, 20## thru December 31, 20##

“Local Imbalance” shall be measured as ([Total Imported Containers] – [Railed Imports]) – ([Total Exported Containers] – [Railed Exports])

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“Allowable Imbalance” shall be measured as 4% of an ocean carrier’s Total Imported Containers in the Current Imbalance Period.

“Current Period Excessive Imbalance” shall be measured as the portion of Local Imbalance that exceeds the Allowable Imbalance.

“Accumulated Excessive Imbalance” shall mean 50% of an Ocean Carrier’s Local Imbalance from prior imbalance periods, up to but not exceeding two imbalance periods prior to the Current Imbalance Period.

“Total Excessive Imbalance” shall mean the summation of the Current Period Excessive Imbalance and Accumulated Excessive Imbalance.

“Marine Terminal Berths” shall mean any berth at a Marine Terminal for which cargo is loaded onto or unloaded from ocean going vessels.

“Ocean Carrier” shall mean the vessel operating common carrier(s) (including the vessel or her owners) participating in the ocean transportation of goods between ports in different countries.

“Rail Cargo” shall mean cargo containers leaving or arriving at Port Authority port facilities via the intermodal rail network.

“Railed Exports” shall mean Rail Cargo shipped via the intermodal rail network to Port Authority port facilities for export from a Marine Terminal.

“Railed Imports” shall mean Rail Cargo shipped via the intermodal rail network from Port Authority port facilities to inland U.S. and Canadian destinations.

“Total Exported Containers” shall mean, during any period, the number of cargo containers loaded at Marine Terminal Berths.

“Total Imported Containers” shall mean, during any period, the number of cargo containers unloaded at Marine Terminal Berths.

“Total Exported Loaded Containers” shall mean, during any period, the number of freight-laden cargo containers loaded at Marine Terminal Berths.

“Total Imported Loaded Containers” shall mean, during any period, the number of freight-laden cargo containers unloaded at Marine Terminal Berths.

2- Method of Assessment of Total Excessive Imbalance for the Current Imbalance Period

The Port Authority shall determine the Total Excessive Imbalance for the Current Imbalance Period using the following method:

Local Imbalance = ([Total Imported Containers] – [Railed Imports]) – ([Total Exported Containers] – [Railed Exports])

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Current Period Excessive Imbalance = $[\text{Local Imbalance}]_{\text{Current Imbalance Period}} - [\text{Allowable Imbalance}]_{\text{Current Imbalance Period}}$

Accumulated Excessive Imbalance = $0.5 * ([\text{Local Imbalance}]_{\text{Current Imbalance Period} - 1} + [\text{Local Imbalance}]_{\text{Current Imbalance Period} - 2})$

Total Excessive Imbalance = $[\text{Current Period Excessive Imbalance}] + [\text{Accumulated Excessive Imbalance}]$

Total Charge = $[\text{Total Excessive Imbalance}] * \100.00

When calculating the Total Excessive Imbalance for the Current Imbalance Period, if Total Exported Loaded Containers are greater than Total Imported Loaded Containers, the Ocean Carrier is not subject to the container imbalance fee.

Example:

Current Imbalance Period: July 1, 2026, through December 31, 2026

Container Imbalance Calculation Date: January 01, 2027

*Allowable Imbalance = 100,000 Total Imported Containers * 0.04 = 4,000 containers*

Local Imbalance = 6,000 containers

Current Period Excessive Imbalance = 6,000 – 4,000 = 2,000 containers

Accumulated Excessive Imbalance = 3,000 containers (50% of 6,000 containers)

Current Imbalance Period – 1 = 3,000 containers (Local Imbalance)

Current Imbalance Period – 2 = 3,000 containers (Local Imbalance)

Total Excessive Imbalance = 2,000 + 3,000 = 5,000 containers

*Total Charge = 5,000 * \$100 = \$500,000*

SUBRULE 34-1440: CONTAINER IMBALANCE FEE

A container imbalance fee may be assessed on each of the two Container Imbalance Calculation Date(s) of the year, January 1st and July 1st, for the Current Imbalance Period, in an amount as per the calculation stated under Method of Assessment of Total Excessive Imbalance for the Current Imbalance Period.

If imposed, container imbalance fees will be invoiced to an Ocean Carrier within 90 days following either January 1st or July 1st and will be payable within 30 days after the date of the invoice therefor.

In the event the Ocean Carrier fails to pay any invoiced amount for 60 days following the date of invoice, the Port Authority shall be entitled to exercise all rights and remedies available to it by law and in equity and may consider non-payment as an element of the creditworthiness of the delinquent Ocean Carrier which may affect its ability to continue to do business at Port Authority port facilities.

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SECTION K

SUSTAINABILITY

SUBRULE 34-1450 DEFINITIONS

Mobile Sources shall include any self-propelled, portable, or transportable equipment, vehicle or vessel that consumes energy or electricity for the purpose of movement, including, motor vehicles, railed vehicles, watercraft, amphibious vehicles, and aircraft, but excluding MHE reported under Section I in subrule 34-1350.

Stationary Sources shall include any fixed equipment, device, building, structure, or installation which consumes energy and/or emits air pollutants during operation and is not designed for propulsion or mobility. Stationary sources include, but are not limited to, power generation units (including diesel, gasoline, natural gas, or electric generators), boilers, compressors, pumps, lighting systems, heating, ventilation, and air conditioning (HVAC) systems, and other similar fixed energy-consuming or emission-producing equipment.

SUBRULE 34-1451 ENERGY CONSUMPTION REPORT

Beginning on May 1, 2026, all lessees, sublessees, and permittees doing business at a Marine Terminal shall provide to the Port Authority an energy consumption report consisting of energy consumed by (1) mobile sources, , and (2) stationary sources operated in the prior calendar year at the Marine Terminal. Such report shall be submitted no later than April 15 each calendar year in a format to be provided by the Port Authority.

SUBRULE 34-1452 : INVENTORY REPORT

Beginning on May 1, 2026, all lessees, sublessees, and permittees doing business at the Marine Terminal shall provide to the Port Authority an inventory report of all stationery and mobile sources, excluding MHE reported under Section I in subrule 34-1350, operated by them in the prior calendar year, no later than June 1 of each following calendar year. Such reports shall be submitted in a format to be provided by the Port Authority.

SECTION L (Effective March 10 th , 2026)				
Schedule of Rates and Charges				
RAILROAD CAR, UNAUTHORIZED STORAGE				
<u>Item</u>	<u>Rate</u>		<u>Period</u>	
Non-Intermodal railroad car	\$30.65		Per railroad car, per day	
SPACE, UNLEASED				
<u>Item</u>	<u>Rate</u>		<u>Period</u>	<u>Additional Charges</u>
Area Type	Rate per Square Foot	Minimum Charge	Period (Up to 10 Days)	Additional Charges
Open Area	\$0.26	\$1651.49	10 days or less	Apportioned utility charges based on the user's occupied area
Covered Area	\$0.50	\$2991.65	10 days or less	Apportioned utility charges based on the user's occupied area
BERTH ASSIGNMENT APPLICATION FEE				
<u>Type</u>	<u>Per Application</u>		<u>Per</u>	
Berth Assignment Permit Electronically Filed via https://app.oceansmart.com/app/home	\$0		per application	
Berth Assignment Permit Not Filed Electronically via https://app.oceansmart.com/app/home	\$858.58		per application	
SECURITY GUARD SERVICES FOR BERTH ASSIGNMENT PERMIT– FEES				
<u>Type</u>	<u>Per Hour</u>		<u>Per</u>	
Straight time (ST)	\$118.94		per hour or part thereof	
Overtime (OT)	\$154.75		per hour or part thereof	

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Minimum charge ST	\$951.52	Minimum charge (8 Hours)
BERTH ASSIGNMENT PERMIT FOR SPECIAL CARGO		
<u>Number of Days</u>	<u>Rate</u>	<u>Per</u>
Days 0-7	\$1,645.74	per day
Days 8-10	\$2,057.67	per day
Day 11	\$2,468.72	and each day thereafter
DOCKAGE – SELF PROPELLED VESSELS (Loading or Discharging)		
<u>Length</u>	<u>Rate</u>	<u>Per</u>
0' to 399'	\$6.57	per foot per 24 hours or part thereof
400' to 499'	\$7.90	per foot per 24 hours or part thereof
500' to 599'	\$9.12	per foot per 24 hours or part thereof
600' to 699'	\$11.55	per foot per 24 hours or part thereof
700' to 799'	\$12.77	per foot per 24 hours or part thereof
800' to 899'	\$13.62	per foot per 24 hours or part thereof
Greater than 900'	\$15.93	per foot per 24 hours or part thereof
Minimum Charge	\$1,594.33	per 24 hours or part thereof
DOCKAGE – SELF PROPELLED VESSELS (Lay Berth Status)		
<u>Length</u>	<u>Rate</u>	<u>Per</u>
0' to 399'	\$2.72	per 24 hours or part thereof
400' to 499'	\$3.72	per 24 hours or part thereof
500' to 599'	\$4.10	per 24 hours or part thereof
600' to 699'	\$4.46	per 24 hours or part thereof
700' to 799'	\$4.96	per 24 hours or part thereof

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800' to 899'	\$5.70	per 24 hours or part thereof
Greater than 900'	\$6.20	per 24 hours or part thereof
Minimum Charge	\$885.33	per 24 hours or part thereof
DOCKAGE – NON-SELF-PROPELLED VESSELS		
<u>Length</u>	<u>Rate</u>	<u>Per</u>
0' to 124'	\$238.12	per each 24 hours or part thereof
125' to 249'	\$357.17	per each 24 hours or part thereof
250' to 499'	\$793.64	per each 24 hours or part thereof
Greater than 500'	\$1,349.28	per each 24 hours or part thereof
FLOATING CRANES- not loading cargo to and from vessels		
<u>Length</u>	<u>Rate</u>	<u>Per</u>
0' to 125'	\$119.18	per each 24 hours or part thereof
125' to 250'	\$178.89	per each 24 hours or part thereof
Greater than 250'	\$298.07	per each 24 hours or part thereof
WHARFAGE		
<u>Category</u>	<u>Rate</u>	<u>Per</u>
All cargo, unless otherwise specifically provided for	\$2.10	per metric ton
Automobiles, unboxed	\$1.51	per measurement ton
Automobile, unboxed POV	\$1.89	per measurement ton
Bulk Cargo	\$2.10	per metric ton
Steel and incidental metals	\$1.36	per metric ton
Scrap metals in bulk, except stainless steel	\$5.23	per metric ton
Stainless steel scrap metal in bulk	\$3.95	per metric ton
Bananas	\$0.24	per metric ton
Cocoa and Coffee	\$3.34	per metric ton

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Cement in bulk	\$2.10	per metric ton
Lumber	\$1.74	per thousand gross BMF
Belgium Block-	\$4.26	per metric ton
Cobblestones-	\$4.26	per metric ton
Salt	\$2.16	per metric ton
Aluminum Trihydrate	\$2.10	per metric ton
Dredge Materials	\$2.10	per metric ton
Glass	\$210	per metric ton
Granite	\$2.10	per metric ton
Gypsum	\$2.10	per metric ton
Hot Briquetted iron	\$2.10	per metric ton
Magnesite	\$2.10	per metric ton
Plywood	\$2.10	per metric ton
Pumice	\$2.10	per metric ton
Vermiculite	\$2.10	per metric ton
Pig Iron	\$2.10	per metric ton
Orange Juice	\$2.10	per metric ton
PASSENGER WHARFAGE		
<u>Item</u>	<u>Rate</u>	<u>Per</u>
For each passenger on an intra-harbor commuter ferry	\$6.81	Each
For all other passengers	\$12.04	Each
WHARFAGE DEMURRAGE		
<u>Item</u>	<u>Rate</u>	<u>Per</u>
Automobiles, unboxed	\$1.12	per measurement ton per day or part thereof

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On all other cargo	\$1.00	per metric ton per day or part thereof
MISCELLANEOUS CHARGES - WATER		
<u>Item</u>	<u>Rate</u>	<u>Per</u>
Water	\$6.12	per short ton
Min. Charge	\$424.25	Minimum Charge whether or not water is used
Connection/Disconnection charge	\$200	Per cart request
MISCELLANEOUS CHARGES ELECTRICITY/LIGHTS		
<u>Item</u>	<u>Rate</u>	<u>Per</u>
Wharf or shed lights	\$3.65	per light for each 12-hour period or part thereof
When Port Authority labor is necessary for hook up and/or disconnect	\$108.84	per hour or part thereof
BILLING REDUCTION ADJUSTMENT FEE		
<u>Item</u>	<u>Rate</u>	<u>Per</u>
Billing reduction	\$296.79	Per Invoice
SEALINK TRANSACTION FEES		
<u>Item</u>	<u>Charge</u>	
New card	\$30.00	
Replace lost or damaged card	\$30.00	
Add-ons	\$30.00	
Renewal of expired card	\$30.00	
Returned checked fee	\$75.00	
CARGO FACILITY CHARGE (CFC)		
<u>Item</u>	<u>Rate</u>	<u>Per</u>
Laden Cargo Container	\$14.80	per TEU
Vehicles	\$1.77	per unit/vehicle
Bulk cargo, break-bulk cargo, general cargo, heavy-lift cargo and other special cargo	\$0.24	per metric ton